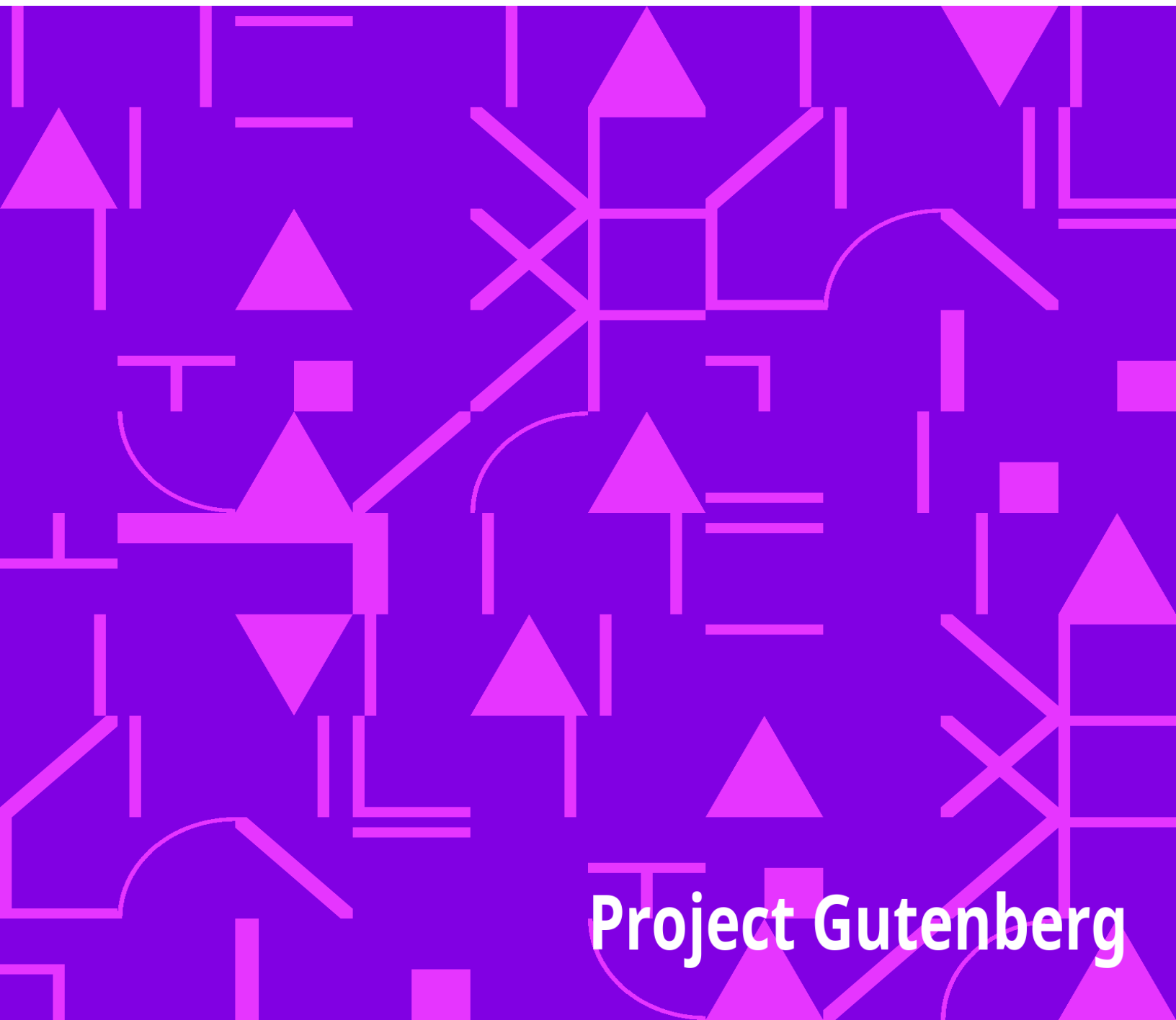


The Bay State Monthly — Volume 2, No. 4, January, 1885

Various

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January, 1885**

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The Bay State Monthly

A Massachusetts Magazine

Volume II

January, 1885.

Number 4.

Contents

Contents

GEORGE DEXTER ROBINSON.

OLIVER AMES.

HISTORICAL SKETCH OF PITTSFIELD.

ROBERT ROGERS, THE RANGER.

ROUSED FROM DREAMS.

HISTORICAL SKETCH OF FITCHBURG

SUNDAY TRAVEL AND THE LAW.

ELIZABETH.

CHAPTER VI.

CHAPTER VII.

Notes



Chas. D. Robinson

GEORGE DEXTER ROBINSON.

BY FRED. W. WEBBER, A.M.

[Assistant Editor of the Boston Journal.]

His Excellency George D. Robinson, at present the foremost citizen of Massachusetts, by reason of his incumbency of the highest office in the Commonwealth, is the thirtieth in the line of succession of the men who have held the office of Governor under the Constitution. In character, in ability, in education, and in those things generally which mark the representative citizen of New England, he is a worthy successor of the best men who have been called to the Chief Magistracy. His public career has been marked by dignity and an untiring fidelity to duty; his life as a private citizen has been such as to win for him the respect and good will of all who know him. He is a man in whom the people who confer honor upon him find themselves also honored. He is a native of the Commonwealth, of whose laws he is the chief administrator, and comes of that sturdy stock which wresting a new country from savagery, fostered with patient industry the germs of civilization it had planted, and aided in developing into a nation the colonies that, throwing off the yoke of foreign tyranny, presented to the world an example of government founded on the equal rights of the governed and existing by and with the consent of the people. His ancestors were probably of that Saxon race which for centuries stood up against the encroachments of Norman kings and nobles, which was led with willingness into the battle, the siege or the crusade that meant the maintenance or advancement of old England's honor, or in the cause of mother Church, and which was possessed of that brave, independent spirit that, when the old home was felt to be too narrow an abode, sought a new-country in which to plant and develop its ideas of what government should be. However this may be it is certain that from the first settlement of the Massachusetts Bay Colony the family was always represented among the most honorable of its yeomanry, and among its members were pillars of both Church and State. His immediate ancestors, people of the historic town

of Lexington, were active citizens in the Revolutionary period, and in the great struggle members of the family were among those who did brave and effective service in the cause of liberty.

George Dexter Robinson was born in Lexington, February 20, 1834. Born on a farm, his boyhood and youth were spent there, and his naturally strong constitution was improved by the outdoor exercise and labor which are part of the life of the farmer's boy. But the future Governor did not intend to devote himself to farming. With the aim of obtaining a collegiate education he attended the Academy in his native town, and followed his studies there by further preparation at the Hopkins Classical School in Cambridge. Entering Harvard University he was graduated at that institution in 1856, and receiving an appointment as Principal of the High School in Chicopee, Massachusetts, he accepted it, filling the position with success during a period of nine years. He retired from it in 1865. Meanwhile he had devoted much time to legal studies, which he continued more fully during the next few months, and in 1866 he was admitted to the bar in Cambridge. Chicopee, the town wherein his active career in life had begun, he made his permanent home, and with the various interests of that town he identified himself closely and pleasantly, exemplifying in many ways the character of a true townsman, and associating himself with every movement for the good of his fellow citizens. In 1873 he was elected to represent the town the ensuing year in the State Legislature, and as a member of the House he was noted for the promptness and fidelity with which he attended to his legislative duties. Two years later he was a member of the State Senate, and here, as in the House, he displayed conspicuous ability as a legislator in addition to that fidelity to his responsibilities which had long been characteristic of him in any and all positions. His qualifications for public life received still wider recognition the year he served in the Senate, and he was nominated by the Republicans of the old Eleventh District as Representative in Congress. He was re-elected for two successive terms, and after the re-apportionment was elected from the new Twelfth District in 1882, but before taking his seat was nominated by the Republicans for the office of Governor, to which he was elected. He took his seat, however, in order to assist in the organization of the new Congress, and, after that work was accomplished, resigned to enter upon the duties entrusted to him by the people of the whole Commonwealth. He had sat in the Forty-fifth, Forty-

sixth, Forty-seventh and Forty-eighth Congresses. Of his career in Washington it would not be possible to give a better summary than one given by "Webb," the able Washington correspondent of the Boston Journal, which is here given in its entirety:

Mr. Robinson took his seat in the Forty-fifth Congress, which met in extra session, in October, 1877. He was prompt in his seat on the first day of the first session. Regularity in attendance, and constant attention to public business, have been characteristics of Mr. Robinson's Congressional career. He is in his seat when the gavel falls in the morning; he never leaves it until the House adjourns at night. He does not spend his time in importuning the departments for clerkships, but he welcomes the civil service law. He does not take the public time, which belongs to his constituents, for his private practice in the United States Supreme Court. He is in the truest sense a representative of the people. He is quick in discovering, and vigorous in denouncing an abuse. He as quickly comprehends and as earnestly advocates a just cause. He is a safe guardian of the people's money and has never cast his vote for an extravagant expenditure; but he does not oppose an appropriation to gain a reputation for economy, or aspire to secure the title of "watch dog of the Treasury," by resorting to the arts of a demagogue.

When he entered Congress, he went there with the sincerity of a student, determined to master the intricate, peculiar machinery of Congressional legislation. He has become an authority in parliamentary law, and is one of the ablest presiding officers in Congress.

In the Congress which he first entered the Democrats were in power in the House. "They had come back," as one of their Southern leaders (Ben Hill) said, "to their father's house, and come to stay." Mr. Randall was elected Speaker. He put Mr. Robinson on one of the minor standing committees—that of Expenditures in the Department of Justice—and subsequently placed him near the foot of the list on the Special Committee on the Mississippi Levees. Before the latter committee had made much progress with its business, it was discovered that where "McGregor sits is the head of the table." Mr. Robinson, at the extra session of the Forty-fifth Congress, took little active part in the public proceedings. He was a student of Congressional rules and practice.

At the second session of the Forty-fifth Congress he began to actively participate in the debates, and from the outset endeavored to secure a much needed reform in Congressional proceedings. He always insisted that, in the discussion of important questions, order should be maintained. He followed every important bill in detail, and the questions which he directed to those who had these bills in charge showed that he had made himself a master of the subject. He took occasion to revise upon the floor many of the calculations of the Appropriations Committee, and to urge the necessity of the most rigid economy consistent with proper administration.

It was at the third session of the Forty-fifth Congress, January 16, 1879, that Mr. Robinson made his first considerable speech. It was upon the bill relative to the improvement of the Mississippi River. He was very deeply impressed with the magnitude of the problems presented by that great river, and, while he was willing that the public money should be wisely expended for the improvement of the 'Father of Waters,' he did not wish that Congress should be committed to any special plan which might prove to be part of a great job, until an official investigation could be had. The interest with which this first speech was listened to, and the endless questions with which the Southern men who favored absolutely the levee system plied him, showed that they understood that great weight would be given to Mr. Robinson's opinion, and that they did not wish him to declare, unconditionally, against their cause. The speech was a broad and liberal one, but extremely just. It had been intimated in the course of the debate that Eastern members, who did not favor the improvement of the river, refused to do so on account of a narrow provincialism. Mr. Robinson showed them that New England is both just and generous, and that the country is so united that a substantial benefit to any portion of it cannot be an injury to another. He made some keen thrusts at the Southern State rights advocates, who were so eager for the old flag and an appropriation, and he reminded them that whatever might be thought of the dogma of State sovereignty, "the great old river is regardless of State lines, of the existence of Louisiana, and, whenever there is a defective levee in Arkansas, over it goes into Louisiana, spreading devastation in its course." Mr. Robinson insisted that "Congress has no right to spend \$4,000,000 out of the public treasury immediately without investigating a theory and a plan which proposes to render such an expenditure wholly unnecessary," and he

maintained that the greatest possible safe-guards should be provided against any extravagant expenditure on the part of the Government. The relations of New England to such an undertaking he thus broadly stated:

"I am not deterred by any considerations that when the great river is open to commerce to an enlarged extent more freight will go down its bosom and be diverted perhaps from the great cities on the Atlantic shore. I am willing that the whole country shall be improved and opened for its best and most profitable occupation. This territory, whose interests are affected by this, is greater than the whole of New England. I am not afraid that whatever improvements may be made there New England will be left out in the cold. Whatever conduces to the prosperity of the West or South will benefit the East and North. We are parts of one great whole, and, if it is necessary under a proper policy to spend some money from the Treasury of the United States to meet the wants of those States lying along the Mississippi River, I hope it will not be begrudged to them, but it should not be done, and the Government should not be committed, until the plans, have received a careful consideration and the indorsement of the proper officers."

At the third session of the Forty-fifth Congress, Mr. Robinson, from his minor place on the Committee on Expenditures in the Department of Justice, introduced a bill relative to the mileage of United States Marshals, which proposed an important reform.

In the Forty-sixth Congress, at the first session, Mr. Robinson, on account of the marked abilities which he had shown as a lawyer and a debater, was appointed a member of the Judiciary Committee, a position which he held through the Forty-sixth Congress with honor to his district and his State. From the outset of the Forty-sixth Congress Mr. Robinson, to the great surprise of many older members, who were not able to fathom the mystery of the rules, took front rank as a debater on points of order, and showed that his months of silent observation and of earnest study had brought their fruit. His discussion of points of order and of the rules was always characterized by good sense. He did not seek to befog a question by an extensive quotation of authorities. He endeavored to strip the rules of their technicalities and to apply to them the principle of common sense. Sometimes, however, he was almost in despair, and once in the course of an

intricate discussion he exclaimed (March 28, 1879): "If there is a standing and clear rule that guides the Chair, I have not yet found it."

At the second session of the Forty-sixth Congress, Western and Southern Democrats united their forces in support of an amendment to the "Culbertson Court bill," which was designed to limit the jurisdiction of the United States courts. Some of the strongest advocates of this amendment were men who, although living in Northern States, were unfriendly to the Union, and who, since the war, have been continuously aggressive in their efforts to place limitations upon national power. Mr. Robinson was a member of the Judiciary Committee and spoke upon the bill. His speech upon this measure attracted more attention than any speech he had delivered before that time. It commanded the undivided attention of the House, which was so interested in it that, although the debate was running in the valuable time of the morning hour, Mr. Robinson, on motion of a Democrat, Mr. Randolph Tucker, after the expiration of his time, was requested to continue. The speech was a powerful, logical, patriotic defence of the federal courts. A few extracts from the general parts of this speech furnish an excellent illustration of the abilities of Mr. Robinson as a debater and orator, as well as of his strong convictions. He spoke as the son of a Jackson Democrat would be likely to speak. He vigorously opposed the increase in the limit from \$500 to \$2,000 as proposed by the Southern and Western Democrats.

After quoting the opinions of Chief Justices Story and Marshall to show that the right of Congress to establish federal courts could not be denied without defeating the Constitution itself, Mr. Robinson continued: "I say, then, that those constitutional provisions give to the citizens of the different States their rights in the federal courts. I say again, it is not within the constitutional power of Congress to make discriminations as to citizens in this matter. It has been taken as settled that the corporations of the States for purposes of jurisdiction are citizens of the States in which they are created. Can you discriminate? Why, in the famous Dred Scott decision, the Supreme Court did discriminate, and said that a negro was not a citizen within the meaning of the Constitution, nor entitled to sue in the Circuit Court of the United States. The nation paused and held its breath, and never recovered itself until after the bloody strife of the war, when was put into

the Constitution that guaranty that no such doctrine should ever be repeated in this country. If Congress can exclude the citizens of a locality, or the citizens of one color, or the citizens of one occupation, or the citizens of certain classes of wealth or industry, surely it can exclude any other citizens. If you can, in this bill and under our Constitution, declare that the citizens, or any portion of them, in this country, because they act in their corporate capacity, shall lose their rights in the federal courts, it is but the next step to legislate that the man who is engaged in rolling iron, or in the manufacture of cotton, or of woolen goods, or is banker, or 'bloated bondholder,' shall not have any rights in the federal courts. There is no step between them. There may be a discrimination as to subject-matter, but not as to citizens. The distinction is very broad, and in recognition of it my argument is made." In the discussion of the apportionment at the Forty-sixth Congress, third session, Mr. Robinson eloquently defended the honor of Massachusetts against the aspersions which had been cast upon the Commonwealth by General Butler in his brief as attorney in the Boynton-Loring contest. In the course of the debate Mr. Cox called attention to this brief and suggested that if it were true the representation of Massachusetts should be curtailed. Mr. Robinson entered into an explanation of the reading and writing qualification for suffrage in Massachusetts. As General Butler was the assailant in this case, Mr. Robinson said:

"I propose to show this matter was understood before 1874. Turn to the debates in the Congressional Globe, volume 75, and in 1869 in this House, and within these walls. General Benjamin F. Butler made this speech in reply to an inquiry made by the gentleman from New York, the Chairman of this Census Committee. He says:

"Everybody in Massachusetts can vote irrespective of color who can read and write. The qualification is equal in its justice, and an ignorant white man cannot vote there and a learned negro be excluded; but in the Georgia Legislature there was a white man who could hardly read and write, if at all, voted in because he was white, while a negro who spoke and read two languages was voted out, solely because he was black. It is well that Massachusetts requires her citizens should read and write before being permitted to vote. Almost everybody votes there under that rule, certainly every native-born person of proper age and sex votes there, and there are

hundreds and thousands in this country who would thank God continually on their bended knees if it could be provided that voters in the city of New York should be required to read and write. They would then believe Republican government in form and fact far more safe than now."

After exposing the assertions of General Butler, Mr. Robinson concluded as follows:

"For twenty-three years it has been written before the people of that State that to entitle them to vote and hold office they shall first learn to read and write. Near to every man's dwelling stands a public free school. Education is brought to the door of every man. These school-houses are supported with almost unbounded munificence. Children have been born in that time and have attended school at the public expense, and the general education of the people has been advanced.

* * * I will not take any time in talking about the policy of the law. There are some and many people in the State who do not think it wise to require the prepayment of a poll tax. People differ about that. Some time or other that may be changed; but for sixty years it has been the law, and it so remains. Looking into the Constitution and the laws of the sister States of Virginia and Georgia and Delaware and Pennsylvania we find similar provisions of the same antiquity justified by the communities that have adopted such legislation. And we say to all the States we leave to you those questions of policy, and we commend them to your judgment and careful consideration. Does any one claim that representation should be reduced because of insanity or idiocy, or because of convicts? Does any one claim that all laws requiring residence and registration should be done away? And yet they are on the same line, on the same principle. There is not one of these prerequisites, on which I have commented, that it is not in the power of the person who desires to get suffrage to overcome and control and conquer so that he may become a voter. But if he be a black man he cannot put off his color. He cannot, if he were born a member of a particular race, strip himself of that quality; nor can he, if he has been in servitude; nor can he, if he has been in rebellion, take out that taint; nor can he, if he has been convicted of other crimes, remove his record of criminality. These are an inherent, inseparable, indissoluble part of that man. But his education, his

registration, his residence, his payment of a portion of the burdens of the State, and the other matters, are in his power and his control. I find it to be in accord with the wisdom of the people of the country that it is the true policy to let the States govern those matters for themselves. The Constitution of the United States touches those things that are out of the man's control."

In the filibustering contest over the rules in the Forty-seventh Congress, first session, Mr. Robinson made a very earnest speech, which commended itself to all except the extreme filibusters. Stripping the contest of its technical parliamentary points, Mr. Robinson said: "Our rules are for orderly procedure, not for disorderly obstruction; not for resistance." Continuing he said that no tyranny is one-half as odious as that which comes from the minority. "Our fathers," he said, "put our Government upon the right of the majority to rule." To the charge of one of the minority that the purpose of the majority to proceed to the consideration of the election cases was tyranny, Mr. Robinson said:

"Tyranny! Because the majority of this House proposes to go forward to action in a way that, upon their oaths, they declare to be right and proper, and in their judgment is to be vindicated, you say that is tyranny! But it is not tyranny for you in a minority forsooth to say, unless it goes just the way we want it, it shall not go at all. That is to say, in the language that you have thrown out here and have fulminated in the caucus, you will sit here till the expiration of this Congress rather than you shall not have your way. I commend to my friend some other dictionary in which he will find a proper definition of the word tyranny."

To show to what logical result the theory of the right of the minority to prevent legislation or the consideration of public business would lead, the following illustration was used: "But this very day suppose by some great calamity the chair of the Speaker was left vacant and we were confronted with the necessity of electing a Speaker. Elect him under the rules, you say. Yes, but under the Constitution, greater than the rule. But, say one-fifth of this House, you shall not proceed to elect a Speaker unless you will take a man from our number; and we will move to adjourn, to adjourn over, and to

take a recess. You shall never organize this House so long as we can call the yeas and nays. Do you believe that we are in that pitiable plight?"

On the subject of civil service Mr. Robinson improved one minute to express his views in this manner:

"I am heartily in favor of this bill. It is in the right direction. We have read enough in the platforms of both political parties; here is a chance to do something.

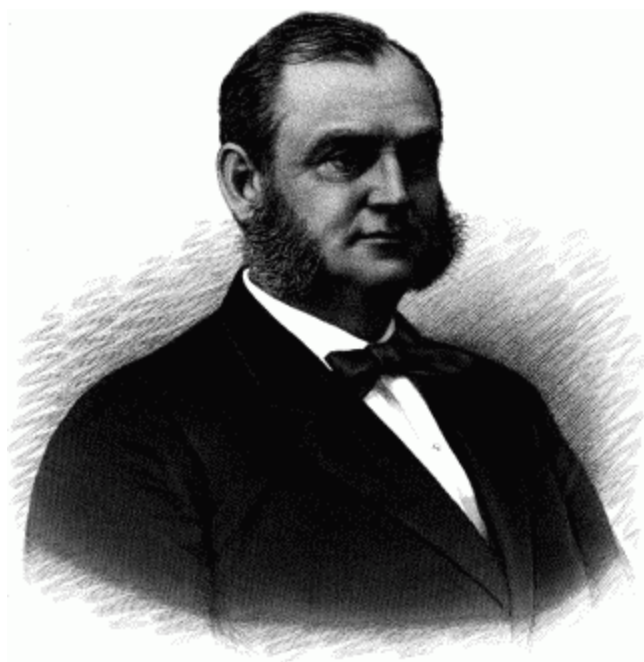
"In some of the States of this country have just been inaugurated officers of the Democratic party; and I have noticed they have made haste, no matter what their declarations have been in recent platforms, to turn out well tried public servants and put in some of their own retainers and supporters. I want this Congress here and now to express itself in this bill, so that it may be in accord with the sentiment of this country.

"I hear some gentlemen say, 'Oh, yes, we are for reform, but this does not reform enough,' I am somewhat alarmed when I find a man who says he wants to reform but cannot begin at all unless he can reform all over in one minute. If there is not enough in this bill, still let us take it gladly, give it a cordial welcome and support, and we will pass some other bill some day which will go as far as our most progressive friends want."

The position of Mr. Robinson on the tariff and River and Harbor bills needs no explanation to Massachusetts readers. He opposed the River and Harbor bill and voted to sustain the President's veto.

The political campaign of 1883, which resulted in Mr. Robinson's election as Governor, was an interesting and somewhat exciting one. His Democratic competitor for the office was General Benjamin F. Butler, who was then Governor, and who took the stump in his peculiarly aggressive way, arraigning bitterly the Republican administrations which had preceded his own and appealing to his own record in the office as an argument for his re-election. His elevation to the Governorship the year before had been the result of some demoralization in the Republican party, and was the possible cause of more, unless a candidate could be found able to harmonize and draw together again the inharmonious elements. That Mr. Robinson was

such a man was indicated very clearly in the fact that the nomination sought him, in reality against his wish, and was accepted in a spirit of duty. Accepting the leadership of his party in the State Mr. Robinson at once applied himself to the further duty of making his candidacy a successful one, and to that end placed himself in the view of the people all over the Commonwealth in a series of addresses that were probably never surpassed for excellence in any previous political campaign. He is an interesting and impressive speaker, an honest man in the handling of facts, logical in his arguments, choice in his language, which is rich in Anglo-Saxon phrases, and with the admirable tone of his utterances combines a clear and ready wit that, never obtruding itself, is never missing when the place for it exists. He made himself thoroughly acquainted with questions at issue, and with questions in general connected with the interests of the Commonwealth. His addresses commanded attention and commended themselves to the common sense of the people, and the result was inevitable. He entered upon the administration of affairs with his customary vigor, and during his first year in office won the respect of men of all shades of political opinion by the ability and impartiality with which his duties were performed. While neglecting none of the details of official business Governor Robinson found time to attend to those social requirements that have long been imposed upon the Chief Magistrate, dignifying by his presence and enlivening by his timely remarks all kinds of gatherings, the aim of which has been to broaden social relations, or to advance the welfare of the community in any way. In the election of November, 1884, he was again the Republican candidate for Governor, and was re-elected. In his personal appearance Governor Robinson is what might be termed a clean-cut man. He is of good stature, compactly built, with a well-shaped head and a face in which are seen both intelligence and determination. His temperament is very even, and though he does not appear to be a man who could be easily excited, he is one who can be very earnest. His manners are pleasant, and in meeting him a stranger would be apt from the first to accord him, on the strength of what he appears to be, full respect and confidence.



Oliver Ames

OLIVER AMES.

By JAMES W. CLARKE, A.M.

[Editor of the Boston Traveller].

The descendants of William Ames, the Puritan, who settled in Braintree, are a representative New England family. Their history forms an honorable part of the history of Massachusetts, and fitly illustrates in its outlines the social and material advancement of the people from the poverty and hardships of the early Colonial days to the wealth and culture of the present. In the early days of the Colony they were poor, as were their neighbors of other names, but they honored toil and believed in the dignity of honest labor. Industry was with them coupled with thrift. They recognized their duty to the State and gave it such service as she demanded, whether it were honest judgment in the jury box, the town meeting and the General Court, or bearing arms against the Indian marauder, and the foreign foe. State and Church were virtually one in these primitive times, and such services as were delegated to individuals by church, by school districts, or by the town, were accepted by the members of this family as duties to be unostentatiously performed, rather than as bringing with their performance either honor or emolument. With their thrift they coupled temperance. They labored subduing the forests, on the clearing and at the forge. Artisans, as well as agriculturists, were needed; and they became skilled artisans. Muskets were as indispensable to these pioneers as hoes or spades; and so they made guns, then farming tools. They made shovels first for their neighbors, then for their township, then for their State and country. As their state advanced they kept pace with it. They found an outlet for the products of their skill at a neighboring seaport, and through this and other outlets secured markets in distant countries. Industries and enterprises which would in time develop other industries and enterprises became the special objects of their encouragement. Where avenues of prosperity and success were lacking, they must be created; and in recognition of this necessity this family took the lead in making the seemingly inaccessible, accessible, and the far, near,

by building a railway across the Continent. In this barest and most meagre outline of the history of a single family may be found in miniature an outline of the history of the development of Massachusetts, of New England.

In the early part of the seventeenth century the Ames family became prominently identified with the Puritan movement in England. William Ames, the divine and author, was among those who for conscience's sake forsook his home, finding refuge in Holland. He became known to fame not only as an able writer, but as Professor in the Franeker University. Richard Ames was a gentleman of Bruton, Somersetshire, England. Neither of these cast in their fortunes with the first Puritan settlers of Massachusetts; but it is doubtful if the sufferings for conscience's sake of those who remained behind were after all less rigorous than were the sufferings of those who, self-exiled, sought homes in New England. The two branches of the family were united by marriage and from them descended the Honorable Oliver Ames, Lieutenant Governor of the Commonwealth of Massachusetts.

The Ames family commence their genealogical tree with the first New England ancestor, William Ames, son of Richard Ames of Bruton, Somersetshire, who came to this country in 1635, and settled in Braintree in 1638. A few years later he was joined by his brother, John Ames, who settled in Bridgewater.

John Ames, only son of William Ames, was born in Braintree in 1651; married Sarah Willis, daughter of John Willis; and in 1672 settled in Bridgewater with his uncle, John Ames, who was childless, and whose heir he became in 1697. He had five sons, one of whom was Nathaniel, the grandfather of Fisher Ames. His estate was settled in 1723.

Thomas Ames, fourth, son of John and Sarah (Willis) Ames, was born in Bridgewater in 1682; married in 1706 Mary Hayward, daughter of Joseph Hayward.

Thomas Ames, eldest son of Thomas and Mary (Hayward) Ames, was born in Bridgewater in 1707; married in 1731 Keziah Howard, daughter of Jonathan Howard; and died in 1774.

Captain John Ames, second son of Thomas and Keziah (Howard) Ames, was born in Bridgewater in 1738; married in 1759 Susannah Howard, daughter of Ephraim Howard. He was a commissioned officer during the war of the Revolution. A blacksmith by trade he also rendered the patriot cause service by the manufacture of guns. His account book, still in existence, also proves that he was engaged in the manufacture of shovels in 1775.

Oliver Ames, third son of Captain John and Susannah (Howard) Ames, was born in West Bridgewater April 11, 1779. For a number of years he was employed at Springfield in the manufacture of guns by his brother, David Ames, who was the first superintendent of the armory, appointed by President Washington; and as early as 1800 was engaged in the manufacture of shovels. In 1803 he married Susannah Angier, a descendant of President Urian Oakes of Harvard College, and the same year he removed to Easton where greater facilities were afforded for carrying on his business. At first his goods found an outlet to markets at Newport, Rhode Island, and at Boston; and a one-horse vehicle was sufficient for the transportation of the raw material to, and the manufactured goods from, his factory. He was a man who combined in himself rare executive ability and mechanical skill, and gradually built up a large and flourishing business. A great impetus was given to manufacturing during the last war with Great Britain, and Mr. Ames availed himself of every opportunity to enlarge his business. The one-horse method of transportation was soon supplanted by six-horse teams; and when, on his retirement from active business in 1844, the firm of Oliver Ames and Sons was formed, the business had grown to large dimensions.

Honorable Oakes Ames, eldest son of Oliver and Susannah (Angier) Ames, was born in Easton, January 10, 1804; married November 29, 1827, Eveline Orville Gilmore; and entered heartily into the enterprises inaugurated by his father. Under his supervision the manufacture of shovels grew into giant proportions. A railroad, constructed to the very doors of the factories, furnished facilities for transporting to them yearly fifteen hundred tons of iron, two thousand tons of steel and five thousand tons of coal, and for carrying away from them more than one hundred and thirty thousand dozen shovels, in the manufacture of which employment had been given to five hundred workmen. The fame of the goods kept pace with the advance of

civilization; and on every frontier, in all quarters of the globe, were found as instruments of progress the Ames shovels.

It is not so much as the successful manufacturer, however, that Oakes Ames will be remembered, as the master mind through whose perseverance and indomitable energy, and in the face of seemingly insurmountable obstacles, was forced to completion the pioneer railway across the Western Continent. He gained a deserved and enduring fame as the builder of the Union Pacific Railroad, and that magnificent work will ever stand as his proudest monument. During the former part of the war of the Rebellion he rendered important service to the Union cause by his shrewd and sagacious counsels in State affairs, and a little later for ten years represented the Second Massachusetts District in the National House of Representatives. He died May 8, 1873.

Honorable Oliver Ames, second son of Oakes and Eveline O. (Gilmore) Ames, was born in North Easton, February 4, 1831. [See genealogical foot note]. He received his early education in the public schools of his native town and at the North Attleboro, Leicester, and Easton Academies. Having thus laid the foundation of a liberal education, he entered the shovel works of his father, where he served an apprenticeship of five years, thus mastering the business in all the minuteness of its details. At the age of twenty, appreciating the value of a more thorough scholastic training, he took a special course at Brown University, placing himself under the special tutelage of President Francis Wayland. The bent of his mind in this, his early manhood, is perhaps best seen from his favorite branches of study, which were history, geology, and political economy. Having finished his collegiate studies, he returned to North Easton where he soon demonstrated that he was possessed of the same splendid business qualities by which his father and grandfather had fought their way to success. His natural love of mechanical employments, which is a marked family trait, soon displayed itself in several inventions; and his inventive genius, coupled with his perfect knowledge of the business, has brought about important changes and improvements in the business of the firm. During this time he served honorably in the State militia, rising from the rank of Lieutenant to Lieutenant Colonel. In 1863 he was admitted a member of the firm of Oliver Ames and Sons, and for several years personally superintended the

various departments of the firm's immense establishment at North Easton. At his father's death in 1873 the numerous financial trusts held by the latter devolved on him, and he has been, and is, President, Director, or Trustee of a large number of institutions and corporations, including railroads, national banks, savings banks, and manufacturing corporations. In 1880 Mr. Ames was elected to the State Senate, and was re-elected in 1881. With the exception of having served on the School Committee of Easton this was the first office to which he had been called by the suffrages of his fellow-citizens. He had, however, taken a deep and active interest in political matters, and had rendered efficient political service by his connection with the Republican Town Committee of Easton, as Chairman and Treasurer, since the formation of the Republican party. As a member of the State Senate he was diligent and painstaking in attendance upon his Legislative duties, and was known as one of the working members of the body. He served during each year of his membership on the Committees on Railroads, and Education. In 1882 he received the Republican nomination for Lieutenant-Governor upon the ticket headed by the name of Honorable Robert R. Bishop as the candidate for Governor. In that tidal-wave year Mr. Bishop was defeated by General Butler, but Mr. Ames was elected by a handsome plurality; and it is not too much to say that by his courteous official demeanor towards his Excellency, Governor Butler, during the somewhat phenomenal political year of 1883, coupled with his firmness and good judgment in opposing the more objectionable schemes of that official, he contributed much to the restoration of the Republican party to power at the ensuing State election. He was re-elected in 1883, and again in 1884, and has now entered upon his third term of service. His political, like his business life, has been characterized by a straightforward honesty of purpose, by the strictest integrity, and by an energetic, able, and faithful performance of trusts accepted. Mr. Ames is the possessor of large wealth, but he has most conclusively proven that such possession is in no sense a bar to a faithful and efficient service of his fellow citizens in positions of trust and honor. His rare executive ability has been of good service to the Commonwealth, in whose affairs he has exercised the same good judgment and marked executive ability, as in his own.

It is, perhaps, as a financier that Oliver Ames has won his widest reputation. Upon the death of his father the management of the vast enterprises which

the later had controlled, suddenly devolved upon him. The greatness of the man showed itself in that he found himself equal to the emergency. The Oakes Ames estate was, at the time he took upon his shoulders its settlement, not only one in which immense and diversified interests were involved, scattered throughout different states of the Union, but it was also burdened with obligations to the extent of eight millions of dollars. The times were most unpropitious, the country being just on the eve of a great financial panic when immense properties were crumbling to pittances. He undertook the Herculean task of rescuing at this time this estate from threatened ruin, and of vindicating the good name of his father from undeserved censure. He had in this gigantic work to meet and thwart the plots of rapacious railroad wreckers, and schemers; but his thorough mental discipline united with his intensely practical business training, and coupled with his native energy, tact, good sense, and fertility of resources, stood him in good stead. He inspired capitalists with confidence, money was forthcoming to further his carefully matured plans, and the ship freighted with the fortunes of his family, was, by his steady hand, piloted securely amidst the shoals and quicksands of disaster, and by rocks strewn with the wrecks of princely fortunes, to a safe anchorage. He rescued the property from peril, met and paid the enormous indebtedness resting upon it, paid a million of dollars or more of legacies, and had still a large surplus to divide among the heirs.

As a business man his sagacity seems almost intuitive. As an illustration of this, his work in developing the Central Branch of the Union Pacific Railroad may be instanced, a work which at the same time gave him high rank as a railroad manager. At the time he connected himself with the undertaking, only the first hundred miles of the road were in running order. He first made a thorough personal investigation of the proposed line, and satisfying himself as to its capabilities for business, he pushed the enterprise through to completion, building two hundred and sixty miles of road, and fully equipping it for operation. His judgment, which at the time was somewhat questioned by other experienced railroad managers and financiers, was fully justified by the result, which was a complete financial success.

One of the most impressive traits in the character of Oliver Ames is his veneration for the memory of his distinguished father. He fully believes that the hastily and unjustly formed verdict of censure pronounced upon Oakes Ames, both by public opinion and by the United States House of Representatives, will ere long be reversed, and that his memory will be honored by the country, as it so justly deserves. Indeed he has already had the gratification of seeing this verdict reversed, so far as public opinion is concerned; and it only remains for Congress to remove its undeserved vote of censure, for Oakes Ames to take his appropriate and honored place in American history. There is little doubt that Mr. Ames will yet see this ambition of his life realized. As to this censure, Massachusetts, where Oakes Ames was best known and appreciated, has spoken through her Legislature by the following resolution, which unanimously passed both House and Senate in the spring of 1883:

"Resolved, in view of the great services of Oakes Ames, representative from the Massachusetts Second Congressional District, for ten years ending March 4, 1873, in achieving the construction of the Union Pacific Railroad, the most vital contribution to the integrity and growth of the National Union since the war:

"In view of his unflinching truthfulness and honesty, which refused to suppress, in his own or any other interest, any fact, and so made him the victim of an intense and misdirected public excitement and subjected him to a vote of censure by the Forty-second Congress at the close of its session;

"And in view of the later deliberate public sentiment, which, upon a review of all the facts, holds him in an esteem irreconcilable with his condemnation, and which, throughout the whole country recognizes the value and patriotism of his achievement and his innocence of corrupt motive or conduct;

"Therefore, the Legislature of Massachusetts hereby expresses its gratitude for his work and its faith in his integrity of purpose and character, and asks for like recognition thereof on the part of the National Congress."

The beautiful Oakes Ames Memorial Hall at North Easton, erected by his sons, is an impressive monument of filial devotion and respect. This village of North Easton, the home of Mr. Ames and other members of the Ames family, as well as the seat of the extensive shovel works, deserves more than a passing notice, enriched and beautified as it has been by this family, until it has become one of the most charming of New England villages, and presents a model which deserves to be widely copied. The old and substantial factories, built of granite, present the neat appearance which characterizes the buildings in some of our oldest navy yards. The employes have many of them grown old in the service of the firm; and well paid, intelligent, and satisfied, are themselves the owners of their attractive cottage homes and take a just pride in the welfare of the community. The concrete walks, macadamized roadways, and well kept yards and lawns evince thrift. The elegant railway station, a gift to the village from one member of the family, is a model of architectural beauty and convenience. The Gothic church and parsonage of the same style of architecture, are befitting adjuncts of the park-like cemetery, where rests the dust of the blacksmith ancestor who bravely struggled amid adverse surroundings to found the fortunes of his family, and build up a business which has extended wherever civilization has made its way. The Memorial hall, before-mentioned, is on a commanding cliff, overlooking the town; close by is the elegant structure known and endowed as the Ames Free Library; and in another direction is the temple, dedicated to the cause of popular education, that emblem of New England's power, the school-house, all monuments of the munificence of the Ames family, and of the deep interest its members take in the welfare of their native town. In the triangle near the centre of the village, formed by the converging of the principal streets, is a declivity, where art has so arranged the rough and irregular forms of New England boulders as to re-produce a unique scene from some Scotch or Swiss village. This "rockery," as it is called, is clothed in summer with

verdure and flowers, and from its summit one finds an extended and charming view of the village, with its cottages, its workshops, and the villas of the proprietors of the latter. These villas, each set in extensive grounds, are models of architectural elegance, and are surrounded by most artistic landscape gardening. Conspicuous among these is the residence of the subject of this sketch, facing, as it does, a spacious well-kept lawn, and overlooking a lake, an exquisite gem in its emerald setting.

The public spirit of the Ames's finds one of its most marked illustrations in this model and typical New England village; and no small share of what has been achieved for it is due to the warm heart and open hand of Oliver Ames. He has ever shown himself an ardent friend of popular education, and justly holds that the New England common school lies at its foundation. For a period of twenty years he found time, amid a multiplicity of weighty business cares, to serve upon the School Committee of his town and to give the benefit of his experience, judgment, and personal supervision to the promotion of the efficiency of this one of the very fundamental of American institutions, the common school. Oakes Ames left a fund of \$50,000, the income to be used for the benefit of the school children of North Easton village. Through the wise thoughtfulness of Oliver Ames many of the privileges arising from this fund have been extended to the other sections of the town; and it hardly need be said that the schools of Easton are among the objects of the fondest pride of its citizens.

Mr. Ames, though absorbed in the cares pertaining to the management of gigantic business interests, yet finds time for the appreciative enjoyment of the amenities and refinements of life. He possesses a cultivated appreciation of music, literature and the drama, and his artistic taste is evinced by his valuable and choice collections of paintings and statuary. Architecture has been with him a special study, and his magnificent winter residence, recently completed on Commonwealth Avenue, in our city of Boston, is a monument of his own architectural taste. In Europe this residence would be called a palace, here it is simply the home of a representative American citizen. Peculiarly happy in his domestic relations his home is beautified and ennobled by the virtues of domestic life. A generous hospitality is dispensed within its portals, where on every hand are found the evidences of the cultured refinement of its occupants. A tour of a few months in the

Old World not only gave Mr. Ames needed rest and relaxation from business cares, but also furnished him with opportunities for observation which were most judiciously improved. In his religious belief he is a Unitarian, and has for many years been an active member of the Unitarian Society of North Easton.

In his native town he is unusually respected and beloved, and with the working-men in his factories he enjoys an unbounded popularity. This is but natural, since he is himself a skilled artisan, an inventive and ingenious mechanic, familiar through a personal experience with every detail of the work in which they are engaged. This, coupled with his native kindness of heart, and his unpretentious manners, makes him the model employer.

The custodian of great wealth, he uses it in a spirit of wise benevolence, and his public and private benefactions, while large, are made without ostentation or affectation. Affable, approachable, companionable, devoted and faithful in his personal friendships, it is little wonder that some of them now and then impulsively speak of him as "the best man in the world."

In the full vigor of a robust manhood, Mr. Ames attends to his vast private business affairs, performs faithfully his official and public duties, finds time for his favorite authors, and keeps fully abreast with current thought and the progress of the age. His brow is yet unwrinkled and cares rest lightly upon him. Free from the pride of wealth, temperate, conservative, clear-headed, and distinguished for his strong common sense, his generous, unsuspicious nature, and unswerving fidelity to the interests committed to his trust justly win for him a multitude of friends.

Faithful in his devotion to the principles of the Republican party, and in his services to his native Commonwealth, Massachusetts has reason for a just pride in her Lieutenant Governor. His name may yet stand the Republican party of the State in good stead in a political exigency not unlikely to arise in the near future. Whatever may be said of the causes of the defection from the Republican ranks which took place in the last national campaign, there is no doubt about one of its results,—it has driven the Republican party to seek a closer alliance with the working-people of the Commonwealth. The Republican bolters were almost exclusively drawn from the aristocratic end of the party. It was Harvard and Beacon Hill that revolted. To make good

the loss the Republican leaders had to appeal for support to the same class of voters which gave to Republican principles their first triumphs,—the intelligent mechanics and artisans, the laboring men. However many or few of the deserters of 1884 may re-join the standard now that Mr. Blaine is defeated it is not likely that for many years to come, if ever, the Republican party in Massachusetts will be able, to lean upon the immense majorities of former years, that ran away up to sixty, seventy, and eighty thousand. With a Democratic administration installed at Washington, and the power and prestige which that fact will imply and apply in the local politics of the States,—and in no State more powerfully than in Massachusetts, where the shifting body of Independent voters, so-called, is largely made up of the Hessian element that will incline to whichever side has spoils to bestow,—the Republican party in order to hold Massachusetts will have to cultivate and strengthen the alliance which it formed in the late election with the laboring class of voters. It will have to revert to the sympathetic and liberal policy touching all questions that affect labor, and the welfare of the working people of the State, which marked the earlier years of its power. The Ames family is linked in the popular mind with that policy. And justly so, too! Oakes Ames was a true friend to labor, as well as one of the most practical; and the fine instinct which guided him in making of North Easton a model industrial community, where the happiest relations of mutual confidence and support have subsisted between employer and employed, he bequeathed to his sons, and to Oliver in an especial and marked degree. It has been said, and there is no element of exaggeration in the statement, that if all our large capitalists and manufacturers could succeed in establishing the same rapport between themselves and their employes which the Ames family have always maintained at North Easton, the vexed problem of capital and labor would be solved; for there would be no more conflict between them. Oliver Ames is held in the same high esteem and almost affectionate regard by the working people of the Old Colony district, where the interests of the Ames Manufacturing Company are centred, in which his honored father was held before him. As the father so the sons! When the time comes, and it is not far off, that the Republican party in Massachusetts shall feel the necessity of getting nearer to her common people, and, in order to retain its supremacy in the State, of offering to their suffrages a man whose whole life has been spent in close and friendly relations with her working-men, it will be strangely blind indeed, to its opportunity, if it shall not turn to the

present popular Lieutenant Governor, and present the name of Oliver Ames as one well fitted to lead the revival of Republicanism among the working-classes, and certain, if presented to them, to be endorsed by a splendid majority for the first office in the popular gift.

[NOTE.

GENEALOGY.

RICHARD AMES of Somersetshire, England.

I. William, who came to America and settled in Braintree, Massachusetts.

II. JOHN AMES, born in 1651; son of William Ames, married Sarah Willis (daughter of John Willis of Duxbury, whose will was proved in 1693). In 1672 he settled in Bridgewater with his uncle, and became his heir in 1697.

III. THOMAS AMES, born in 1682; lived in Bridgewater and married in 1706 Mary Hayward (daughter of Deacon Joseph and Sarah [Mitchell] Hayward, and granddaughter of Thomas Hayward and of Ephraim Mitchell, the latter of whom came to America in the third ship, arriving at Plymouth in 1623)

IV. THOMAS AMES, born in 1707; married in 1731 Keziah Howard (daughter of Jonathan and Sarah [Dean] Howard, and granddaughter of John and Martha [Haywood] Howard of Duxbury).

V. CAPTAIN JOHN AMES, born 1738; died July 17, 1805; married in 1759 Susannah Howard (born in 1735; died January 11, 1821). She was the daughter of Ephraim and Mary (Keith) Howard; great

granddaughter of John Howard of Duxbury and Rev. James Keith.

VI. OLIVER AMES, born April 11, 1779; died September 11, 1863; married in April, 1803, Susannah Angier (born March, 1783; died March 27, 1847). Dr. William Ames, the Franeker Professor, had a daughter (2), Ruth, who came to America in 1637, and married Edmund Angier of Cambridge, whose son (3), Rev. Samuel Angier, married Hannah, daughter of President Urian Oakes of Harvard College. Their son (4), Rev. John Angier, married Mary Bourne, granddaughter of Governor Hinckley. Their son (5), Oakes Angier, a law student of President John Adams, was the father of (6) Susannah Angier. Children:

1. *Oakes*, born January 10, 1804; died May 8, 1873.
2. Horatio, b. November 18, 1805; d. Jan. 28, 1844.
3. Oliver, Jr., b. November 5, 1807; d. March 9, 1877.
4. Angier, b. February 19, 1810; d. July 27, 1811.
5. William L., b. July 9, 1812; died in St. Paul, Minn.
6. Sarah A., b. September 9, 1814; married October 10, 1836, Nathaniel Witherell, Jr.
7. John, 2d, b. April 18, 1817; d. May 14, 1844.
8. Harriett, b. September 12, 1819; m. March 27 1839, Asa Mitchell.

VII. HONORABLE OAKES AMES, born January 10, 1804; died May 8, 1873; married November 29, 1827, Eveline Orville Gilmore (born June 14, 1809; died July 20, 1882). Children:

1. Oakes Angier, born April 15, 1829.
2. *Oliver*, b. February 4, 1831.
3. Frank Morton, b. August 14, 1833.
4. Henry G., b. April 10, 1839; died September, 1841.
5. Susan Eveline, b. May 14, 1842; married Henry W. French.

VIII. HONORABLE OLIVER AMES, born February 4, 1831; married March 14, 1860, Anna C. Ray (born January 16, 1840, in Nantucket). Children:

1. William Hadwen, born March 1, 1861.
2. Evelyn Orville, b. April 4, 1863.
3. Anna Lee, b. September 6, 1864.
5. Lillian, b. January 4, 1870.
6. Oakes, b. September 26, 1874.

EDITOR.]



HISTORICAL SKETCH OF PITTSFIELD.

By FRANK W. KAAAN.

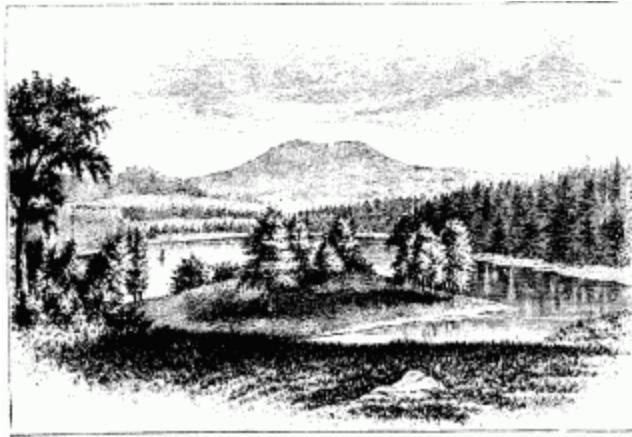
We were changing cars about midnight at Rotterdam Junction, New York, for the Fitchburg Railroad connection. "You might know we were near Boston," said a passenger. "See what a comfortable car this is." "Yes," remarked a middle-aged gentleman, "I've been away for three weeks, and I never want to leave Boston for so long a time again." And he gave a sigh of relief. No doubt many highly enjoyable smiles were called forth by this innocent confession. Yet the sentiment found an echo in our hearts. But a North Adams man spoke up rather sharply, "Well, Berkshire County is good enough for me." The incident has a deeper meaning than appears at first glance.

Going westward on the Boston and Albany, a heavy up-hill grade is reached at Chester. The rest of the way lies in a country of hills. A pleasing prospect meets the eye in every direction. There is nothing sublime and majestic to inspire the mind and exhilarate the spirits, but the steadfast, sober hills and the quiet valleys in nature's soft colors are restful alike to body and soul.

We cross a branch of the River Housatonic, *alias* Ousatonic, Ausotunnoog, Awoostenok, Asotonic, Westenhok, and the train stops before a large, handsome brick station, once the "best in the State," now restricted to "west of Boston." A broad street on the left leads to the park in the centre of the town. Here is the Berkshire Athenæum, with its excellent public library, where we must stay long enough to glance through the town history, compiled by Mr. J.E.A. Smith.

A century and a half ago an unbroken wilderness stretched between the Hoosac and Taconic ranges. The mountains rose by steady degrees from the hills of Connecticut to Mount Mansfield, in Vermont, 4,400 feet above the level of the sea. The valley, however, dotted with hundreds of hills, reached its greatest elevation, 1,100 feet, at the foot of Greylock, fourteen miles

north of Pittsfield; thence it sloped irregularly north and south. The forests contained deer in plenty for fifty years longer. A few bears, with rather more wolves and Indians, constituted the remainder of the larger movable objects of the landscape. The soil was well fitted for agriculture: numerous small streams were ready to offer their service to settlers.



This region remained uninhabited, however, for many years later than would ordinarily have been the case; not so much from fear of hardships or Indian troubles as on account of the uncertainty of the land tenures which could be acquired. Massachusetts, by reason of the Royal Charter of 1691, claimed to the west as far as the Province of Connecticut extended. New York, on the other hand, maintained that the eastern boundary of Connecticut was meant: moreover, that the western boundary had been agreed upon for special reasons; furthermore, that her own territory, as successor to the rights granted the Duke of York in 1674, reached from the Connecticut River to Delaware Bay. Thereupon Massachusetts referred to the old Charter in force in 1674, which made the Atlantic and Pacific her eastern and western limits. In return, attention was called to the clause in that Charter, excepting lands in the possession of any other Christian State. Now, in consequence of the discovery of the Hudson in 1608, the Dutch had occupied the country as far east as the Connecticut, and to their title New York succeeded. Massachusetts then denied the fact of settlement. Thus the controversy was prolonged until, in 1773, a line to be run parallel with the Hudson, at a distance of twenty miles, was agreed upon. But about the year 1720 it became evident that the western boundary of Connecticut would be established in favor of that province. This arrangement, as the New York representatives stated, was a result of the boldness of settlers in pushing

westward and occupying the district in dispute. Accordingly, Massachusetts was encouraged to pursue a similar course, and the first settlement on the Housatonic was made at Sheffield in 1725. The occasion of the next advance appears to have arisen from the attention paid to free education in Boston. That town, in 1735, because of its large expenditures for public schools, support of poor, and contribution to the State treasury, petitioned the General Court for a grant of three or four townships within the "Hampshire wild lands." Three lots, each six miles square, were given, subject to certain conditions. Within five years, sixty Massachusetts families must be settled, each possessing a house (at least eighteen feet square and seven stud), with five acres of improved land. A house for public worship must be erected, and a learned Orthodox minister be honorably supported; lastly, a school must be maintained.



One of these townships, Poontoosuck, an Indian word, meaning "winter deer," was bought at public auction for £1,320, by Colonel Jacob Wendell, whose descendents have earned lasting honor for the family name. Philip Livingston, of Albany, and John Stoddard, through older claims, became

associated with him as joint proprietors. The terms of the grant were not strictly complied with, and, after an unsuccessful attempt to bring in Dutchmen, a company of forty settlers from Westfield purchased and took possession of the greater part of the township. Difficulties with the Indians soon drove them back. The first permanent settlement was made in 1749, and three years later occurred the birthday of the town.



In May, 1761, the first town meeting was held. At this time the name was changed to Pittsfield in honor of William Pitt, for his vigorous conduct of the war against France. Slaves were owned by many of the citizens, and stocks and a whipping-post were set up. Saw mills and grist mills were in operation; fulling mills held an important position, and shortly afterwards the production of iron became considerable. The first meeting-house was completed in 1770. The most pretentious dwelling-house was "The Long House," owned by Colonel Williams. The first appropriation for schools was twenty-two pounds eight shillings, in 1762.

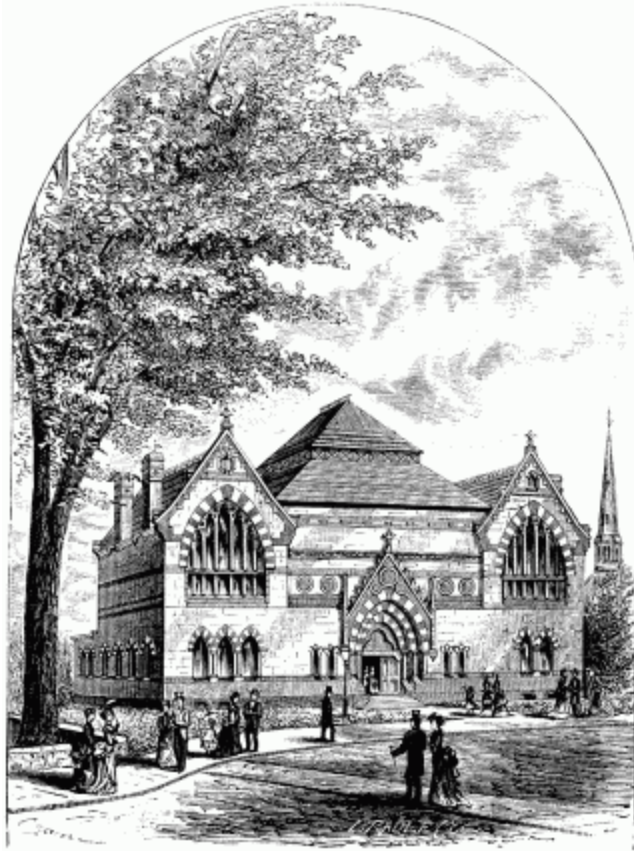
In resistance to British oppression at the outbreak of the Revolution, Berkshire County required no one to lead the way. "The popular rage," wrote Governor Gage, "is very high in Berkshire and makes its way rapidly to the rest." In response to the Boston Port bill cattle and money were sent to the sufferers. Resolutions were passed to discontinue the consumption of English goods at whatever time the American Congress should recommend such action. In August, 1774, Berkshire set the example of obstructing the

King's Courts. In the expedition for the capture of Ticonderoga, in the invasions of Canada, and in Burgoyne's campaign, the town and the county held a place among the foremost in efforts and sacrifices for the cause of liberty. The recommendations of the Continental Congress were followed out with promptness and zeal. A similar spirit was displayed in the relations with the Provincial Government, so far as they affected the carrying on of the war. Yet, from 1775 to the adoption of the State Constitution in 1780, the county was ruled in open resistance to the civil authorities at Boston. Although representatives were sent to the General Court, the acts of that body were accepted merely as advice. The judicial and executive branches of the Government were not recognized. It was maintained that the new Government should originate from the people on the basis of a written Constitution and bill of rights. To this end they "refused the admission of the course of law among them," until their demands should be complied with. Furthermore, the old Courts were objectionable as being costly and cumbersome. They were unpopular for the hardness exercised towards poor-debtors and criminals convicted of trifling offences. In the absence of the usual means of enforcing the laws, the town Governments took in charge the administration of justice, acting either through committees or in town meetings. Public order appears to have been well preserved, and in the condition of business interests the want of civil courts was of little consequence.

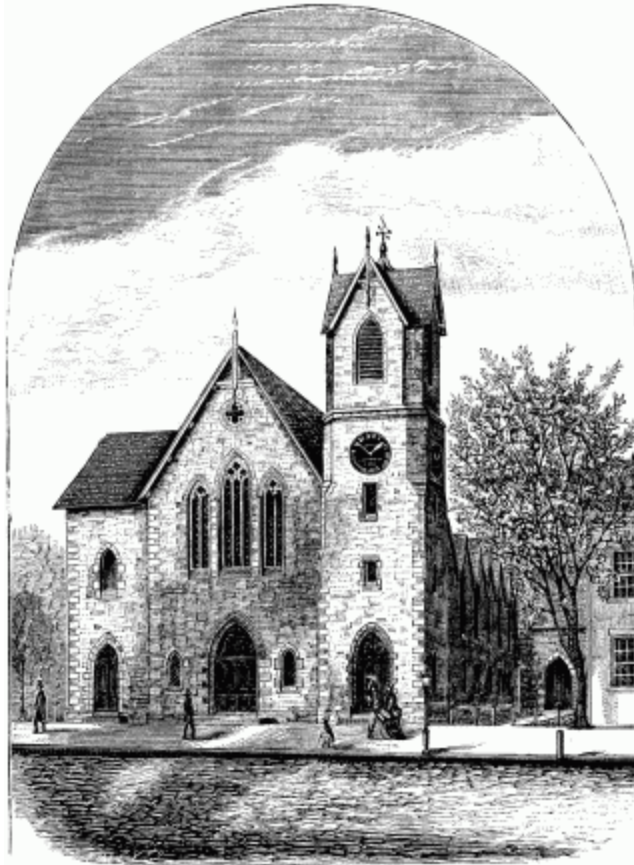




An opposition of a different kind broke out after the State authority had been re-established under the new Constitution. The national Government was involved in difficulties; values were unsettled by the excessive emission of paper money. Heavy taxes, cruel collection laws, numerous private debts, and frequent cases of imprisonment for debt, caused a widespread feeling of discontent. The State Constitution was found fault with from the start, and a clamor arose for the abolition of the Senate, a change in the basis of representation, and an annual grant of salaries to all officers. This agitation, in 1786, culminated in an appeal to force of arms, known from its leader, as Shay's Rebellion. It is unnecessary to repeat the story of its suppression. The leaders of the former opposition held aloof. There was a desire felt by the steadier portion of the community to make a fair trial of the State Constitution, which afforded a legal means, however slow, for redressing the heavier grievances. Pittsfield in particular was now advancing in material prosperity, and looked with disfavor upon any radical changes.



Rev. Thomas Allen, one of the early ministers, was the man most actively engaged in town affairs at this period of its history. He was of medium height, slender, of a mild, pleasant countenance. Courteous, sincere and just, he set his parishioners an example of Christian morals. An application of doctrines to the practical questions of life was a favorite subject of his sermons and private conversation. He held small respect for any religious faith which did not manifest itself in outward acts, and especially those done for the public good. Endowed with a keen sense of right and wrong he took his position and maintained it with zeal. His personal participation in several battles of the Revolution gained for him the title of "The Fighting Parson." Once, when asked whether he actually killed any man at Bennington, he replied "that he did not know; but, that observing a flash often repeated from a certain bush, and that it was generally followed by the fall of one of Stark's men, he fired that way and put the flash out."



He was a firm friend of Democracy. During the revolution he was a radical Whig, and later on became an ardent supporter of Jeffersonian doctrines. In the second period partisan feelings were very bitter in the community. When, therefore, he gave full freedom to his thoughts in articles published in the Pittsfield Sun, and, in accordance with a practice more prevalent then than now, mingled political subjects with his Sunday discourses, the Federalist members of the Congregational Church grew restive under his pastorphism. At this time, it should be noted, Berkshire differed in politics from the rest of the State. Matters grew worse, until a division of the parish was made and continued for seven years. Thomas Allen died in 1811, at the age of 67.



Contrary to the custom in almost every other town of the State, and notwithstanding the statute requirements, public worship in 1809 ceased to be supported by the town, and nearly an equality of religious sects before the law was produced. In 1817, after the re-union of the Congregational Churches, the parish system was revived. It should be kept in mind that by far the larger part of the population were members of that denomination, identifying its early history with that of the town. Rev. Heman Humphrey became pastor, a man of scholarly attainments, and well fitted to encourage the general longing for a complete reconciliation.

In 1821 a great revival took place, and to strengthen the religious interest Mr. Humphrey believed it to be essential that, so far as possible, the town should preserve a solemn quiet, and he endeavored to substitute religious services in place of the ordinary manner of celebrating the Fourth of July. This plan was, to a considerable number of citizens, by no means acceptable, yet the exercises in the Church were attended by a large and reverent congregation. The meeting-house stood upon the little square where the people were wont to collect on all anniversaries. In consequence, there was a very annoying disturbance from fire-crackers, drums, fifes, and

even cannon, and the attempt to make this national holiday quiet and serious was not repeated. Mr. Humphrey two years later became President of Amherst College. In 1833 the corporate connection of the Congregational Society with the town came to an end through the Constitutional Amendment of that year. Two years later business was in a state of depression, and emigration went on at a rapid rate. A missionary from the West made known the need in that great section of Christian emigrants to help mould its character. From the Baptist Church in one year more than a hundred members set forth, leaving finally but three men in the Congregation. During the first half of the century other sects acquired a foot-hold, and are now supported by large Congregations, composed of the best citizens of the town.

To turn back again in the narrative of events. Of the town's record in the war of 1812, little must be said, although much is deserved. In this matter, as previously in others, the county, by its warm support of the war party, showed its independence in thought and action of the rest of the State. Pittsfield was made a place of meeting for recruits; a cantonment for United States troops was established, and a depot for prisoners of war, who numbered at times 1,500 or more. The town was most largely represented in the Ninth and Twenty-first Regiments. The former won for itself the name of "The Bloody Ninth;" the latter was that regiment, which, under Colonel Miller at Lundy's Lane, gained undying fame in a gallant struggle for the enemy's cannon.



The history of the Berkshire Agricultural Society may be traced back to its origin in 1807, when Elkanah Watson, who had recently become an inhabitant of the town, exhibited two fine merinoes, a ram and a ewe, on the green under the Old Elm. Great interest was aroused, and the importation of the best foreign breeds of cattle and sheep was encouraged and carried on by public-spirited and enterprising citizens. One farmer came into possession of a cow, in which he felt so much pride that it formed the subject of his conversation at all times and places, until his friends feared to meet him. At last it gave birth to a calf, but minus a tail, and the wrathful owner carried the calf, with his axe, to the back pasture. The Society was organized in 1811. New features were added from time to time; standing crops were inspected; women were interested to compete for premiums. The plowing match became a part of the Pittsfield show in 1818, when a quarter of an acre of green sward was plowed in thirty-five minutes by the winner. Dr. Holmes, in 1849, Chairman of the committee, read his poem, "The Ploughman." Many years before, William Cullen Bryant, then a lawyer in Great Barrington, wrote an ode for the cattle show. Improved agricultural implements and better methods of cultivation were some of the material benefits produced by the fairs. The fame and influence of the Society have reached all parts of the country. In 1855, exhibition grounds, thirty acres in extent, were purchased in Pittsfield.

The Berkshire Jubilee of 1844 merits at least a brief mention. It was a gathering from far and near of those emigrants from the county, who still held their early home in loving memory. Of the thousands that were present, many were men of national reputation. Among the exercises, a sermon of welcome was delivered by the Rev. Mark Hopkins, a prayer was offered by Rev. David Dudley Field, an address was given by Governor Briggs, and a poem was read by Dr. Oliver Wendell Holmes.



Governor Briggs had become a citizen of Pittsfield two years before. He was born at North Adams in 1796. When seventeen years of age, after having spent three years in learning the hatters' trade, he began the study of law with but five dollars in his possession, which he had earned at haying. In 1850, after seven consecutive terms as Governor, he was defeated by a coalition of Democrats and Free-Soilers. He was as true a friend of a pure civil service as any man of the present day. Like a well-known English writer on political economy, and for similar reasons, he refused to furnish money for his own election expenses, however legitimate; thus, although unwillingly, placing the burden upon the shoulders of other members of his party, a course which gave equal satisfaction in both countries. He was distinguished for the consistency of his life with his religious and temperance principles. Once, it is said, while exhorting a friend who had already entered the downward path of immoderate drinking, Mr. Briggs was induced to promise that so long as the other would abstain from drinking, he, himself, would give up the use of a collar; and this agreement was kept by both parties for life. The truth in regard to the anecdote is rather as follows: While County Commissioner he was often obliged to make long drives, so that besides the annoyance from wearing a collar, he found great difficulty in replacing it when soiled. From this arose a habit of dispensing with it altogether. Once, being rallied on the subject by an old friend, he offered to resume his collar if the other would cease drinking gin, and would cut off his cue. The gin and the cue carried the day.

The Berkshire Medical Institute was established in 1822, mainly through the exertions of Dr. H.H. Childs. The charter provided that degrees should be conferred only by the President and Trustees of Williams' College, and according to the rules in force in the school at Cambridge. The purpose was

to secure a uniform practice throughout the State, and to cause a degree of confidence in the diplomas. The arrangement continued fifteen years. The tuition fee was fixed at forty dollars, and board, room-rent and lodging at one dollar and seventy-five cents a week. In 1825 it became necessary to defray incidental expenses, and pay the salaries of instructors out of the proceeds from tuition fees. These were frequently paid in notes, many of which read "when said student shall be able to pay," and having been distributed among the members of the faculty, a large number were found afterwards in the deserted office of the Dean. In 1867 the compensation of each instructor was about one hundred and thirty dollars, hardly enough to attract young, inexperienced physicians. Therefore, the college came to an end, having graduated in the course of forty-four years over one thousand doctors of medicine, who held rank in their profession equal to that of those sent out by any college in the country.



The Public Library Association was founded in 1850, with a regulation excluding forever all prose works of fiction, and on the other hand, theological writings, unless admitted by a unanimous vote of the Directors. After a few prosperous years public interest had so far died out that the library consisted of a few books and a small room, open one evening in the week by the dim light of a lantern. A timely donation, and a liberal construction of the rule regarding works of fiction, had a favorable effect.

A Young Men's Association was organized in 1865, with a library, reading-room, collection of curiosities, and provision for amusement and exercise. It

had a very successful career for about eight years. Meanwhile the Library Association, its name having been changed to the Berkshire Athenæum, was put on a better footing by the liberality and efforts of Thomas F. Plunkett, who afterwards, together with Calvin Martin and Thomas Allen, was instrumental in forming it into a free library. In 1874, by means of a bequest from Phinehas Allen, and the gift of its present building from Thomas Allen, the Berkshire Athenæum was placed upon a firm foundation. For the past eleven years it has been under the efficient management of Mr. E.C. Hubbel, Curator and Librarian. To-day it contains 16,000 volumes, and with an average annual circulation of 50,000; less than ten volumes have been lost.

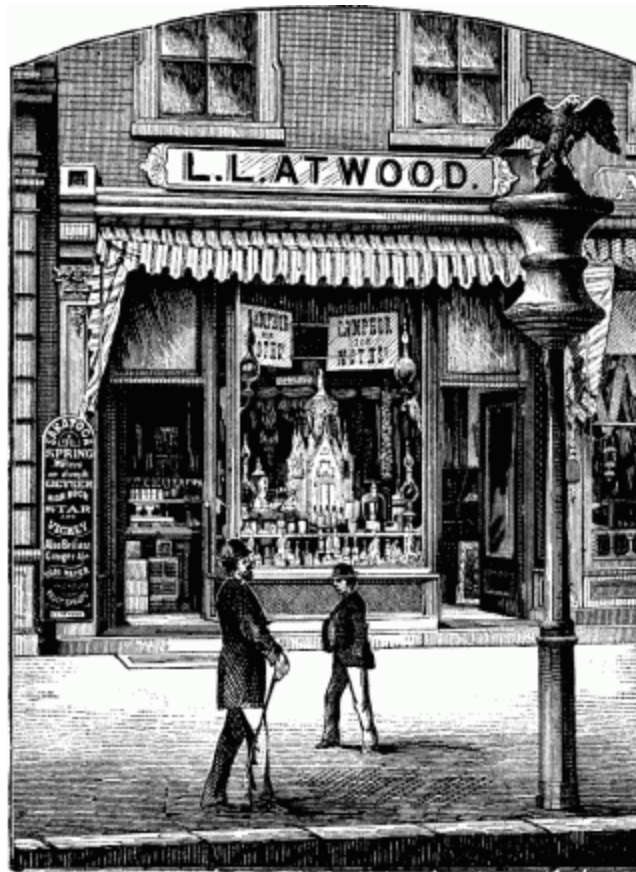
The history of the public schools is in no important respect different from that in hundreds of other towns. They were first carefully graded in 1874, and have enjoyed an excellent reputation. By far the greater proportion of the young folks in town attend them. The system of free text books was early adopted. The High School, under the care of an able scholar, Mr. Edward H. Rice, has been steadily growing in favor during the past few years. Graduates yearly enter the various colleges, and from neighboring towns a considerable number of its pupils come and pay the tuition required by law.

For the higher education of young women the Pittsfield Female Academy was incorporated in 1806, with Miss Hinsdale as principal. It has continued ever since, usually with a lady at the head, and for the last few years especially has done good work under Miss Salisbury. The Maplewood Young Ladies' Institute, the most noted school of education that has ever existed in Pittsfield, has this year closed an existence of forty-three years. Its loss will be mourned by many friends in the town and elsewhere. Among the illustrations is given a view of the avenue and the chapel; behind the latter stands the meeting-house of 1793, of late years used for a gymnasium.

About the time of Shay's Rebellion the first newspaper, the American Sentinel, was published. It was printed on a sheet ten by eighteen inches in size, and gave the greater portion of its space to two or three prosy essays. Three other newspapers appeared and vanished in turn until, in the year 1800, the Pittsfield Sun was established by Phinehas Allen. It remained in

his hands for nearly three-quarters of a century, and to this day gives its support to the Democratic party. James Harding is the editor. The Argus was started in 1827, as a rival, by Henry K. Strong. Four years later it was removed to Lenox, and united with the Berkshire Journal. In 1838 the name was changed to the Massachusetts Eagle, and soon afterwards it was brought back to Pittsfield. In 1852 it was given the name, The Berkshire County Eagle, which it bears to-day. Both of these papers are weeklies. The Journal is of later date, and is issued daily. Joseph E. See is editor. In mentioning the educational facilities of a community it would be an act of thoughtlessness to omit its bookstores. There is but one in Pittsfield. It contains a large supply of books, selected with judgment, and is well managed by Mr. J.B. Harrison.

Rev. John Todd became, in 1839, a worthy pastor to the Church, over which Thomas Allen presided many years before. His early life had been a struggle for an education against poverty and ill health. It is interesting to read his estimate of the new congregation to which he was called after having been for five years pastor in Philadelphia: "It is a great, rich, proud, enlightened, powerful people. They move slowly, but they tread like the elephant. They are cool, but kind, sincere, great at hearing, but very critical. I have never had an audience who heard so critically. There is ten times more intellect that is cultivated than we have ever had before. You would be surprised to see how much they read. The ladies are abundant, intelligent, refined, and kind. A wider, better, harder, or more interesting field no man need desire." Dr. Todd became one of the most public-spirited citizens of the town, jealous of its honor. Educational matters, especially, received his attention and assistance. His reputation as an author is not confined to his town, nor to his day. The "Student's Manual" is the best known of his works; the lectures delivered on returning from a visit to California are well worth reading.



The first manufactories of the town date back to within a few years of its settlement. Agriculture was, of course, the leading industry, and was carried on according to the wasteful and, apparently, unwise methods usual in a newly-settled country. Great attention was paid to breeding horses and mules, of which many were sent to the West Indies and other markets. The first carding machine was set up in 1801 by Arthur Scholfield, an Englishman. Soon he set about making and improving machines, which he sold to manufacturers in various parts of the country. The industry was subsequently helped on by the superior quality of wool, which resulted from the new custom of seeking better breeds of sheep. About 100,000 yards of cloth, worth as many dollars, were produced in the county in 1808. After the war which followed came a season of depression of manufactures; the cessation of the unusual war demand and excessive importations from abroad were the principal causes.

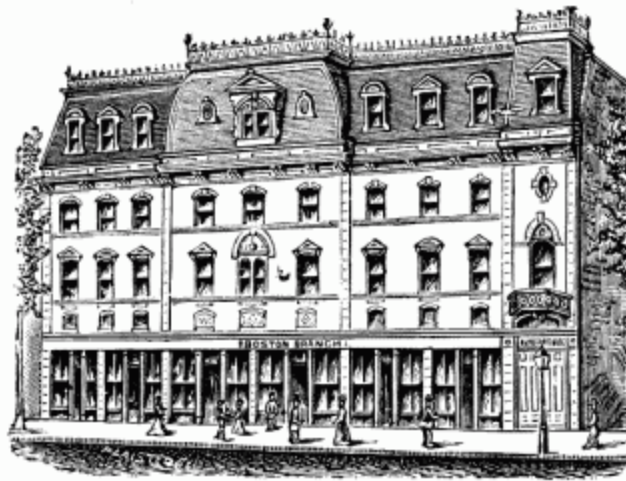
At this period, when politics were carried into private affairs, as religion had been some hundred years before, each party must have its factory. Thus

the Housatonic Woolen Mill of 1810 was offset a few years later by the Pittsfield Woolen and Cotton Company in Federalist hands. The former enterprise languished before long for want of sufficient water power. The latter, by a change of ownership, came under the control of Lemuel and Josiah Pomeroy, and enjoyed the benefits of the tariffs of 1824 and following years. Other mills went gradually into operation. But in this instance Yankee ingenuity and versatility found a difficult foe to master. The proprietors were ambitious and determined to make their fabrics as firm and as heavy as the best imported goods. In this they succeeded, but by a clumsy, wasteful process, which destroyed all profit. Moreover, instead of making a single class of goods, each factory attempted to satisfy the various demands of the market. Hence arose multiplied causes of failures, for which remedies had to be invented. A general business knowledge did not immediately avail in an industry where matters of detail were of the greatest consequence. To-day these mills are the principal sources of wealth in the county. Another branch of manufactures grew up in 1799 when Lemuel Pomeroy came to Pittsfield, and in addition to the ordinary labor of a blacksmith began to make plows, wagons, and sleighs. He bought the old Whitney forge and extended the works from the production of fowling pieces to that of muskets. Large contracts with State and National governments brought a profitable business, until, in 1846, the percussion guns were introduced.

The independant spirit displayed by Pittsfield, or rather by Berkshire County, in matters of the highest importance, was largely due to the difficulty of communication with other sections of the country. For the first eighty years the Worthington turnpike, running by way of Northampton, was the only means of passage to the east. In 1830 the Pontoosuc turnpike going through Westfield was completed and transferred traffic from the old road to the new, which led to Springfield. A little before this time the Erie Canal project was successfully carried out. Thereupon arose in Massachusetts a wide-spread desire for engaging in a similar enterprise. Several routes were explored for a canal from Boston to the Hudson. One of them passed through Pittsfield at an altitude of 1,000 feet, and the route recommended as feasible was 178 miles in length, and required a tunnel of four miles under the Hoosac mountain. One of its opponents showed that according to the Commissioner's data, fifty-two years would be required in

which to finish the tunnel. At this point came the news of successful steam locomotion in England, and a discussion began as to the comparative merits of railways and canals. For several years horse-power was proposed to be employed, but before actual work began the superiority of steam had been demonstrated. In the face of indifference, skepticism, and active opposition, which brought about discouraging delays, the road was built, and the first railroad train entered Pittsfield May 4, 1841. That week occurred the first accident. An old man jumped off the train as it approached his house, and was severely injured. Thus, in 1842, chiefly through the exertions of Lemuel Pomeroy, the Western Railroad was completed, and trains ran from Albany to Boston. Several short local roads have since been constructed, which have done more to bind the county together, and have contributed greatly to its wealth and comfort. On the west the physical barriers were less difficult to surmount, and the advent of railroads has only diminished the inequality. New York is still the metropolis; the mass of travel, the business relations, are turned in that direction.

In 1844 what is known as the Fire District was organized. Its territory consists of about two square miles of land, having the Park as a centre, and includes most of the buildings of the town. It originated from the unwillingness of the outlying districts to help support a suitable fire department, of which they, themselves, felt little need. Nevertheless, at its formation the town granted land and a sum of money. A Chief Engineer, with seven assistants and a prudential committee were constituted officers. Subsequently the care of sewers, sidewalks, water-works, and lighting of streets were assumed by the Fire District, and the duties were performed by commissioners. A curious controversy, now settled, arose with the town as to which should look after the street crossings. The fire department from the start has been sustained by the zeal of its members, and now, directed by its Chief Engineer, George S. Willis, enjoys an enviable reputation for efficiency.



During the civil war the State and County are found to have acted in harmony. The old militia system had died out many years before; in 1860 the Pittsfield Guards of 1853 was re-organized under the name of the Allen Guard, and in January of the following year declared its readiness to respond to any call from the government. On April 19, within twenty-four hours from the time of receiving word, the company was on its way and became a portion of the Eighth regiment. Its Captain was Henry S. Briggs, later Brigadier General, and after the war elected State Auditor. Then, at short intervals, until the close of the war, the town sent men to the front who fully maintained its honorable reputation gained in former wars. A Ladies' Soldiers' Aid Society was organized and has received much merited praise for its useful services. The ideal volunteer soldier of the war was William F. Bartlett. He was a student at Harvard, not yet of age when the war broke out. In April he enlisted as a private, was appointed Captain before going to the front, and in his first engagement showed great coolness, bravery and judgment. He was a strict disciplinarian and popular

with his men. Before the close of the war he had been brevetted Major-general. In peace he made his influence felt in the interests of religion and education, and in the elevation of politics.

Immediately after the war public attention in the town was turned towards taking suitable action for honoring the memory of its sons who had died on the field of battle. The result was a monument, one of the most appropriate ever erected for a similar purpose. It is placed on the Park, a short distance from the Athenæum. A bronze statue of a Color-sergeant, as if in line of battle, stands upon a square granite pillar. He looks earnestly into the distance. The entire effect of the expression of the countenance and the attitude conveys the impression of intelligent self-reliance, a true type of our best volunteer soldiers. On opposite sides of the pillar, are represented in bronze relief the arms of the United States and of the Commonwealth.

On the others are two shields, engraved with the names of those in honor of whom this memorial was erected. The shaft bears the following inscriptions. On the west face:

"FOR THE DEAD, A TRIBUTE—FOR THE LIVING,
A MEMORY—FOR POSTERITY, AN EMBLEM OF
LOYALTY TO THE FLAG OF THEIR COUNTRY."

On the east face:

"WITH GRATEFUL RECOGNITION OF THE
SERVICES OF ALL HER SONS WHO UPHELD THE
HONOR AND INTEGRITY OF OUR BELOVED
COUNTRY IN HER HOUR OF PERIL, THE TOWN
OF PITTSFIELD ERECTS THIS MONUMENT IN
LOVING MEMORY OF THOSE WHO DIED THAT
THE NATION MIGHT LIVE."

At the dedication the national flags of the two political parties were removed from the streets and with them the statue was draped. The town was crowded with visitors, and a long procession marched through the streets. A prayer by Rev. Dr. Todd, speeches by General Bartlett and Honorable Thomas Colt, President of the day, and an oration by George William Curtis accompanied the unveiling.

The four principal streets of the town, named from the points of the compass, meet at the Park. North street contains the bulk of the stores and business places. On the corner of West street is the building of the Berkshire Life Insurance Company, which was incorporated in 1851, and has always included among its Directors and Managers the best business men in the town and county, who naturally take great pride in it as one of the soundest Life Insurance Companies of the country.

In the same building are three national and one savings bank, besides the town and other offices. Immediately beyond is Mr. Atwood's drug store, an establishment of long standing, which would bear favorable comparison with any similar store as regards either attention or knowledge of a druggist's duties. Farther along the same street are Central Block and the Academy of Music. In other parts of Pittsfield broad streets, lined with tall elms and shady horse-chestnut trees, invite our footsteps. The dwelling-houses are mostly of wood, built in the cottage and villa styles of architecture; many are stately edifices; many are hospitable mansions; all show unmistakable evidence of being comfortable homes. Scattered over the township, each springing up around a mill or two, are miniature villages. Their population is largely made up of foreigners, Irish and Germans, whose condition appears to be somewhat better than that of the same class in cities. Both sexes are represented among the operatives. The mills, mostly small, are located with a view to an opportunity for using water power, yet none are without steam power as well. In the same neighborhood are the large farms and expensive estates of the mill-owners, the wealthiest class in the community. Between the villages, in fact, upon all the roads, every turn brings in sight pleasing views which never repeat themselves or become monotonous. The cemetery is itself one of the most beautiful spots in the neighborhood. A massive granite gateway is being put up, the gift of the late Thomas Allen. For a long distance the road leads

through a thick forest of maple, pine and oak trees. A swiftly-running brook crosses the path; a quiet clear pond with grassy banks lies to one side. If the visitor will remain motionless for a short time, birds and squirrels show themselves in all directions, and fill his ears with the sounds of the woods. Far away may be seen the white houses and the church spires of the town. No resting place for the dead could be more peaceful, more inspiring to meditation on the part of those who walk in the light of day. By the grave of General Bartlett stands a cross all covered with graceful hanging Southern moss. Below is a beautiful bed of flowers, cared for with a constant devotion, and by the same loving hands has been added a large natural rock, imbedded in the ground. On it is fixed a large tablet with this inscription:

WILLIAM FRANCIS BARTLETT,

Brigadier General and Brevet Major General

UNITED STATES VOLUNTEERS.

BORN IN HAVERHILL, MASSACHUSETTS,

June 6th, 1840.

DIED IN PITTSFIELD,

December 17th, 1876.

A Soldier, undaunted by wounds and imprisonment.

A Patriot, foremost in pleading for reconciliation.

A Christian, strong in faith and charity,

His life was an inspiration,

His memory is a trust.

Pittsfield, although one of the largest towns in the country, is not ambitious to try a city form of government. Five years ago a charter was procured, but no action was taken upon it. There is no disposition on the part of those who favor the plan to force it into notice before public opinion is ripe on the subject. At the annual town meetings where a majority of the voters are present there have thus far been few attempts at unfair management. The best portion of the community take the most active share in the proceedings. Thus there exists a real Democracy, an inestimable educator of the people possible only among an energetic people, who, by inheritance, have acquired a love for the practical; in the absence of arbitrary government have been long accustomed to the use of political rights, and from their character combine in their thoughts and actions, reason with understanding and conscience with religious sentiment.

A review of the lives of these men, who made for the town its honorable history, brings prominently to one's mind the frequency of instances in which each gained by his own exertions his influence and reputation. It is one of the best criterions of excellent social and political institutions. Lemuel Pomeroy, who in 1799 brought his anvil to Pittsfield; George N. Briggs, who served as an apprentice four years, working for eight dollars a year; Thomas F. Plunkett, who for five years travelled from town to town in Eastern New York, carrying on a trade with householders and country dealers; John Todd, who worked his way through college against poverty and ill-health; these are names that deserve to be handed down to following generations, to the end that their influence may still remain as an incitement to honest and unwearied efforts by successors ready to emulate, though not to imitate, the examples set before them.

ROBERT ROGERS, THE RANGER.

By JOSEPH B. WALKER.

No man has been universally great. Individuals who have made themselves prominent among their fellows have done so by achievements in special directions only, and confined to limited portions of their lives. Particularly true is this remark when applied to Major Robert Rogers, the Ranger, who, in our last French war, greatly distinguished himself as a partisan commander, and gained as wide fame as did any other soldier of equal rank and opportunity.

I do not introduce him here as a saint, for, as is well known, no quality of sanctity ever entered his composition; but rather, as the resolute commander of resolute men, in desperate encounters with a desperate foe; as a man eminently fitted for the rough work given him to do. And just here and now I am reminded of a remark made in his old age by the late Moody Kent, for a long period an able member of the New Hampshire bar, and there the associate of Governor Plummer, George Sullivan, and Judge Jeremiah Smith, as well as of Jeremiah Mason, and the two Websters, Ezekiel and Daniel, all of whom he survived. Said Mr. Kent, one day, evidently looking forward to the termination of his career, "Could Zeke Webster have been living at my decease he would have spoken as well of me, yes, as well of me as he could." If one can summon to his mind and heart the kindly charity attributed to Mr. Webster, he may, should he care for it, find a comfortable hour in the society of this famous Ranger. He was born of Scotch-Irish parents, in the good old Scotch-Irish town of Londonderry, New Hampshire, in the year 1727.¹ At the time of his birth, this was a frontier town, and its log houses were the last civilized abodes which the traveller passed as he went up the Merrimack valley on his way to Canada. It was the seed-town from which were afterwards planted the ten or a dozen other Scotch-Irish townships of New Hampshire.² It was the first to introduce and scatter abroad Presbyterian principles and Irish potatoes over considerable sections of this Province.

Parson McGregor and his people had been in their new homes but four years when they had ready for occupancy a log school-house, sixteen feet long and twelve feet wide. It was in this, or in one like it, that Robert Rogers acquired his scanty stock of "book-learning," as then termed. But education consists in much besides book-learning, and he supplemented his narrow stock of this by a wider and more practical knowledge, which he obtained amid the rocks and stumps upon his father's farm and in the hunter's camp.

The woods, at this day, were full of game. The deer, the bear, the moose, the beaver, the fox, the muskrat, and various other wild animals existed in great numbers. To a young man of hardy constitution, possessed of enterprise, energy, and a fondness for forest sports, hunting afforded not only an attractive, but a profitable employment. Young Rogers had all these characteristics, and as a hunter, tramped through large sections of the wilderness between the French and English settlements. On such excursions he mingled much with the Indians, and somewhat with the French, obtaining by such intercourse some knowledge of their languages, of their modes of hunting, and their habits of life. He also acquired a fondness for the woods and streams, tracing the latter well up towards their sources, learning the portages between their headwaters, many of the Indian trails and the general topography of the great area just mentioned.

During the French and Indian wars small bodies of soldiers were often employed to "watch and ward" the frontiers, and protect their defenceless communities from the barbarous assaults of Indians, turned upon them from St. Francis and Crown Point. Robert Rogers had in him just the stuff required in such a soldier. We shall not, therefore, be surprised to find him on scouting duty in the Merrimack Valley, under Captain Ladd, as early as 1746, when he was but nineteen years of age;³ and, three years later, engaged in the same service, under Captain Ebenezer Eastman, of Pennycook.⁴ Six years afterwards, in 1753, the muster rolls show him to have been a member of Captain John Goff's company, and doing like service.⁵ Such was the training of a self-reliant mind and a hardy physique for the ranging service, in which they were soon to be employed.

I ought, perhaps, to mention, that in 1749, as Londonderry became filled to overflowing with repeated immigrations from the North of Ireland, James Rogers, the father of Robert, a proprietor, and one of the early settlers of the township, removed therefrom to the woods of Dunbarton, and settled anew in a section named Montelony, from an Irish place in which he had once lived.⁶ This was before the settlement of the township, when its territory existed as an unseparated part only of the public domain. He may, quite likely, have been attracted hither by an extensive beaver meadow or pond, which would, with little improvement, afford grass for his cattle while he was engaged in clearing the rich uplands which surrounded it.

Six years only after his removal (1755), he was unintentionally shot by a neighbor whom he was going to visit; the latter mistaking him for a bear, as he indistinctly saw him passing through the woods. This incident was the foundation of the story said to have been told by his son, some years after, in a London tavern. The version given by Farmer and Moore is as follows, viz.:⁷ "It is reported of Major Rogers, that while in London, after the French war, being in company with several persons, it was agreed, that the one who told the most improbable story, or the greatest falsehood, should have his fare paid by the others. When it came to his turn, he told the company that his father was shot in the woods of America by a person who supposed him to be a bear; and that his mother was followed several miles through the snow by hunters, who mistook her track for that of the same animal. It was acknowledged by the whole company that the Major had told the greatest lie, when in fact, he had related nothing but the truth."⁸

As the largest part of Roger's fame rests upon his achievements in the ranging service of our Seven Years' War, we must recall for a moment the condition of things in the British Colonies and in Canada at the beginning of this war.

The thirteen American Colonies had, at that time, all told, of both white and black, a population of about one million and a half of souls (1,425,000.)⁹ The French people of Canada numbered less than one hundred thousand.¹⁰

The respective claims to the Central part of the North American Continent by England and France were conflicting and irreconcilable. The former, by right of discovery, claimed all the territory upon the Atlantic coast from

New Foundland to Florida, and by virtue of numerous grants the right to all west of this to the Pacific Ocean. The latter, by right of occupation and exploration, claimed Canada, a portion of New England and New York, and the basins of the Ohio and Mississippi Rivers, together with all the territory upon the streams tributary to these, or a large part of the indefinite West.

To maintain her claims France had erected a cordon of forts extending diagonally across the continent from the mouth of the St. Lawrence to the Gulf of Mexico. If one will follow, in thought, a line starting at Louisburg, and thence running up this great river to Quebec and Montreal, and thence up Lake Champlain to Crown Point and Ticonderoga, and on westward and south-westward to Frontenac, Niagara and Detroit, and thence down the Ohio and Mississippi to New Orleans, he will trace the line across which the two nations looked in defiance at each other, and see instantaneously that the claims of France were inadmissible, and that another war was inevitable. It mattered little that of the forty-five years immediately preceding the treaty of Aix La Chapelle, fourteen, or one-third of the whole number, had been years of war between these two neighbors. They were now, after a peace of only half a dozen years, as ready for a fresh contest as if they were to meet for the first time upon the battle field. In fact, another conflict was unavoidable; a conflict of the Teuton with the Gaul; of medievalism with daylight; of conservatism with progress; of the old Church with the new; of feudalism with democracy—a conflict which should settle the destiny of North America, making it English and Protestant, or French and Roman Catholic; a contest, too, in which the victor was to gain more than he knew, and the vanquished was to lose more than he ever dreamed of.

Hostilities may be said to have been commenced by the French, when, on the 18th day of April, 1754, they dispossessed the Ohio company of the fort which they were erecting at the forks of the Ohio River, afterwards named Fort Du Quesne.

The plan of a Colonial Confederation, formed at the Albany convention in July of that year, having failed of acceptance by the mother country and the Colonies both, the Home government was forced to meet the exigency by

the use of British troops, aided by such others as the several Provinces were willing to furnish.

The campaign of the next year (1755) embraced:

1st. An expedition, under General Braddock, for the capture of Fort Du Quesne.

2d. A second, under General Shirley, for the reduction of Fort Niagara, which was not prosecuted.

3d. A third, under Colonel Moncton, against the French settlements on the Bay of Fundy, resulting in the capture and deportation of the Acadians.

4th. A fourth, under General William Johnson, against Crown Point, a strong fortification, erected by the French, in the very heart of New England and New York, whence innumerable bands of Indians had been dispatched by the French to murder the defenceless dwellers upon the English frontiers, particularly those of New Hampshire, to destroy their cattle and to burn their buildings and other property.

To the army of this latter expedition New Hampshire contributed, in the early part of this year, a regiment of ten companies, the first being a company of Rangers, whose Captain was Robert Rogers, and whose Second Lieutenant was John Stark. ¹¹

But a few words just here in explanation of the character of this ranging branch of the English army. It was a product of existing necessities in the military service of that time. Most of the country was covered with primeval forests and military operations were largely prosecuted in the woods or in limited clearings. The former were continually infested with Indians, lying in ambush for the perpetration of any mischief for which they might have opportunity.

It became necessary, therefore, in scouring the forests to drive these miscreants back to their lairs, as well as in making military reconnoissances, to have a class of soldiers acquainted with Indian life and warfare; prepared, not only to meet the Indian upon his own ground, but to

fight him in his own fashion. The British Regular was good for nothing at such work. If sent into the woods he was quite sure, either not to return at all, or to come back without his scalp. And the ordinary Provincial was not very much better. From this necessity, therefore, was evolved the "Ranger."

He was a man of vigorous constitution, inured to the hardships of forest life. He was capable of long marches, day after day, upon scant rations, refreshed by short intervals of sleep while rolled in his blanket upon a pile of boughs, with no other shelter but the sky. He knew the trails of the Indians, as well as their ordinary haunts and likeliest places of ambush. He knew, also, all the courses of the streams and the carrying places between them. He understood Indian wiles and warfare, and was prepared to meet them.

Stand such a man in a pair of stout shoes or moccasins; cover his lower limbs with leggins and coarse small clothes; give him a close-fitting jacket and a warm cap; stick a small hatchet in his belt; hang a good-sized powder-horn by his side, and upon his back buckle a blanket and a knapsack stuffed with a moderate supply of bread and raw salt pork; to these furnishings add a good-sized hunting-knife, a trusty musket and a small flask of spirits, and you have an average New Hampshire Ranger of the Seven Year's war, ready for skirmish or pitched battle; or, for the more common duty of reconnoitering the enemy's force and movements, of capturing his scouts and provision trains, and getting now and then a prisoner, from whom all information possible would be extorted; and, in short, for annoying the French and Indian foe in every possible way.

If you will add three or four inches to the average height of such a soldier, give him consummate courage, coolness, readiness of resource in extremities, together with intuitive knowledge of the enemy's wiles, supplemented with a passable knowledge of French and Indian speech, you will have a tolerable portrait of Captain Robert Rogers at the beginning of our Seven Year's war.^{[12](#)}

He received his first Captain's commission in the early part of 1755, and was employed by the New Hampshire government in building a fort at the mouth of the Ammonoosuc River and in guarding its Northern and Western frontiers until July, when he was ordered to Albany to join the army of

Major General Johnson. His first service there was in furnishing escort, with a company of one hundred men, to a provision train from Albany to Fort Edward. From this latter point he was afterwards repeatedly despatched, with smaller bodies of men, up the Hudson River and down Lake George and Lake Champlain to reconnoiter the French forts. Some of these expeditions extended as far north as Crown Point and were enlivened with sharp skirmishes. He was absent up the Hudson upon one of these when the French were defeated at the battle of Lake George and Baron Dieskan was made prisoner.

The efficiency of the campaign of the next year (1756), which contemplated the taking of Crown Point, Niagara and Fort Du Quesne, was seriously impaired by the repeated changes of Commander-in-Chief; Major General Shirley being superceded in June by General Abercrombie while he, about a month later, yielded the command to the inefficient Lord Londown. The only occurrences of particular note during this campaign were the capture of our forts at Oswego by General Montcalm and the formal declarations of war by the two belligents.

Rogers and his men were stationed at Fort William Henry, and made repeated visits to Ticonderoga and Crown Point to ascertain the power of the enemy and to annoy him as they had opportunity. They went down Lake George, sometimes by land upon its shores, and sometimes by water and in boats. In the winter their land marches were frequently upon snow-shoes, and their boats were exchanged for skates. On such occasions each Ranger was generally his own commissary and carried his own supplies.

In his journal for this year (1756) Rogers notes thirteen of these expeditions as worthy of record. The first was down Lake George on the ice, in January, with seventeen men, resulting in the capture of two prisoners and two sledges laden with provisions.

The second was made in February with a party of fifty men to ascertain the strength and operations of the French at Crown Point. Having captured one prisoner at a little village near by the fort, they were discovered and obliged to retire before the sallying troops of the garrison. With very marked sang froid he closes his account of this reconnoissance by saying: "We employed ourselves while we dared stay in setting fire to the houses and barns in the

village, with which were consumed large quantities of wheat, and other grain; we also killed about fifty cattle and then retired, leaving the whole village in flames."

There often appears a ludicrous kind of honesty in the simple narratives of this journal. He occasionally seized certain stores of the enemy which a Ranger could destroy only with regret. He naively remarks, in narrating the capture in June, of this same year, of two lighters upon Lake Champlain, manned by twelve men, four of whom they killed: "We sunk and destroyed their vessels and cargoes, which consisted chiefly of wheat and flour, wine, and brandy; some few casks of the latter we carefully concealed."

His commands on such occasions varied greatly in numbers, according to the exigency of the service, all the way from a squad of ten men to two whole companies; and the excursions just mentioned afford fair specimens of the work done by the Rangers under Rogers this year.

Rogers possessed a ready wit and an attractive bonhomie, which made him agreeable to his men, notwithstanding the necessary severity of his discipline. A story has come down to us which well illustrates this trait in his character. Two British Regulars, it seems, a good deal muddled, one night, by liberal potations, became greatly concerned lest their beloved country should suffer dishonor in consequence of inability to discharge its national debt, and their loyal forebodings had, at length, become painful. The good-natured Captain, encountering them in their distress, at once relieved them by the remark: "I appreciate the gravity of your trouble, my dear fellows. It is, indeed, a serious one. But, happily, I can remove it. I will, myself, discharge at once one-half the debt, and a friend of mine will shortly pay the other half." From this incident is said to have arisen the expression, at one time common, "We pay our debts as Rogers did that of the English nation."

But Captain Rogers had qualities of a higher order, which commended him to his superiors. His capacity as a Ranger Commander had attracted the notice of the officers on duty at Lake George. The importance of this branch of the service had also become apparent, and we shall not be surprised to learn that, in March, 1756, he was summoned to Boston by Major General Shirley and commissioned anew as Captain of an independent company of

Rangers, to be paid by the King. This company formed the nucleus of the famous corps since known as "Roger's Rangers."

In July another company was raised, and again in December two more, thereby increasing the Ranger corps to four companies. To anticipate, in a little more than a year this was farther enlarged by the addition of five more, and Captain Rogers was promoted to the rank of Major of Rangers, becoming thus the commander of the whole corps.

The character of the service expected of this branch of the army was set forth in Major General Shirley's orders to its commander in 1756, as follows, viz.: "From time to time, to use your best endeavors to distress the French and allies by sacking, burning, and destroying their houses, barns, barracks, canoes, and battoes, and by killing their cattle of every kind; and at all times to endeavour to way-lay, attack and destroy their convoys of provisions by land and water in any part of the country where he could find them."¹³

On the fifteenth of January of the next year (1757) Captain Rogers, with seventy-four Rangers, started down Lake George to reconnoiter the French forts; travelling now for a time upon the ice, and by and by donning snow-shoes and following the land. On the twenty-first, at a point half way between Ticonderoga and Crown Point, they discovered a train of provision sledges, three of which they captured, together with six horses and seven men. The others fled within the walls of Ticonderoga and alarmed the garrison. Feeling the insecurity of his situation he commenced at once his return. By two o'clock in the afternoon, his party was attacked by two hundred and fifty French and Indians, who endeavored to surround it. A vigorous fight was kept up until dark. Rogers was wounded twice and lost some twenty of his men. The French, as was subsequently ascertained, lost one hundred and sixteen. The proximity of Ticonderoga rendered vain the continuance of the contest, and he availed him of the shelter of the night to return to Fort William Henry.

For this exploit he was highly complimented by General Abercrombie, and, at a later period of this same year, was ordered by Lord Londown to instruct and train for the ranging service a company of British Regulars. To these he devoted much time and prepared for their use the manual of instruction now

found in his journals. It is clearly drawn up in twenty-eight sections and gives very succinctly and lucidly the rules governing this mode of fighting.

The campaign of 1757 contemplated only the capture of Louisburg. To the requisite preparations Lord Londown directed all his energies. Having collected all the troops which could be spared for that purpose, he sailed for Halifax on the twentieth of June with six thousand soldiers, among them being four companies of Rangers under the command of Major Rogers. Upon arriving at Halifax his army was augmented by the addition of five thousand Regulars and a powerful naval armament. We have neither time nor inclination to consider the conduct of Lord Londown on this occasion farther than to say that his cowardice and imbecility seem wonderful. Finding that, in all probability, Louisburg could not be taken without some one getting hurt, he returned to New York without striking a blow. If about this time our heroic commander of the Rangers used some strong language far from sacred, it will become us to remember "Zeke Webster" and think as charitably of his patriotic expletives "as we can." He returned to New York three weeks after the surrender of Fort William Henry, where with his Rangers he might have done something, at least, to prevent the horrible massacre which has tarnished the fair fame of Montcalm indelibly.

England and America both were humbled in the dust by the events of 1757 and 1758. Failure, due to the want of sufficient resources is severe, but how utterly insufferable when, with abundant means, incompetency to use them brings defeat. Still, we are under greater obligation to Lord Londown than we are wont to think. His imbecility helped rouse the British nation and recall William Pitt to power, whose vigor of purpose animated anew the people of other countries and promised an early termination of French dominion in America.

Lord Londown was succeeded in the early part of 1758 by General Abercrombie and plans were matured for capturing the Lake forts, Louisburg and Fort Du Quesne. By the close of November, the two last, with the addition of Fort Frontenac, were ours. The movement against Crown Point and Ticonderoga did not succeed. In the assault upon the latter Rogers and his Rangers fought in the van and in the retreat brought up the rear.

In the spring of this year (1758) Rogers went down Lake George at the head of about one hundred and eighty-men, and near the foot of it had a desperate battle with a superior body of French and Indians. He reported on his return one hundred and fourteen of his party as killed or missing. Why he was not annihilated is a wonder. General Montcalm, in a letter dated less than a month after the encounter, says: "Our Indians would give no quarter; they have brought back one hundred and forty-six scalps." For his intrepidity on this occasion he was presented by General Abercrombie with the commission of Major of Rangers, before alluded to.

The adroitness with which Rogers sometimes extricated himself from extreme peril is illustrated by his conduct on one occasion, when pursued by an overwhelming number of savages up the mountain, near the south end of Lake George, which now bears his name. Upon reaching the summit he advanced to the very verge of the precipice, on the east side, which descends 550 feet to the lake. Having here reversed his snow shoes he fled down the side opposite to that by which he had come up. Arriving soon after the Indians, upon seeing the tracks of two men, apparently, instead of one, and Rogers far below upon the ice, hastening towards Fort Edward, concluded that he had slid down the precipice aided by the Great Spirit, and that farther pursuit was vain.

Mr. Pitt proposed in the campaign of 1759 the entire conquest of Canada. Bold as was the undertaking it was substantially accomplished. Ticonderoga and Crown Point were abandoned in July, Fort Niagara capitulated the same month, and Quebec was surrendered in September.

Their violation of a flag of truce in this last month now called attention to the St. Francis Indians, who had been for a century the terror of the New England frontiers, swooping down upon them when least expected, burning their buildings, destroying their cattle, mercilessly murdering their men, women, and children, or cruelly hurrying them away into captivity. The time had now come for returning these bloody visits. The proffering of this delicate attention was assigned by Major General Amherst to Rogers. In his order, dated September 13, he says: "You are this night to set out with the detachment, as ordered yesterday, viz., of 200 men, which you will take under your command and proceed to Misisquey Bay, from whence you will

march and attack the enemy's settlements on the south side of the river St. Lawrence in such a manner as you shall judge most effectual to disgrace the enemy, and for the success and honour of his majesty's arms.

* * * * *

"Take your revenge, but don't forget that tho' those villains have dastardly and promiscuously murdered the women and children of all ages, it is my orders that no women or children are killed or hurt."

In pursuance of these orders Major Rogers started the same day at evening. On the tenth day after he reached Missisquoi Bay. On the twenty-third, with one hundred and forty-two Rangers, he came, without being discovered, to the environs of the village of St. Francis. The Indians had a dance the evening following his arrival and slept heavily afterwards. The next morning, half an hour before sunrise, Rogers and his men fell upon them on all sides, and in a few minutes, ere they had time to arouse themselves and seize their arms, the warriors of that village were dead. A few, attempting to escape by the river, were shot in their canoes. The women and children were not molested.

When light came it revealed to the Rangers lines of scalps, mostly English, to the number of six hundred, strung upon poles above the door-ways. Thereupon, every house except three containing supplies was fired, and their destruction brought death to a few who had before escaped it by concealing themselves in the cellars. Ere noon two hundred Indian braves had perished and their accursed village had been obliterated.

The operations of the next year (1760) ended this long and fierce struggle. The attempted re-capture of Quebec by the French was their final effort. The army of the Lakes embarked from Crown Point for Montreal on the sixteenth day of August. "Six hundred Rangers and seventy Indians in whale-boats, commanded by Major Rogers, all in a line abreast, formed the advance guard." He and his men encountered some fighting on the way from Isle a Mot to Montreal, but no serious obstacle retarded their progress. The day of their arrival Monsieur de Vaudveuil proposed to Major General Amherst a capitulation, which soon after terminated the French dominion in North America.

The English troops, as will be remembered, entered Montreal on the evening of the eighth of September. On the morning of the twelfth Major Rogers was ordered by General Amherst to proceed westward with two companies of Rangers and take possession of the western forts, still held by the French, which, by the terms of the capitulation, were to be surrendered.

He embarked about noon the next day with some two hundred Rangers in fifteen whale-boats, and advanced to the west by the St. Lawrence and the Lakes. On the seventh of November they reached the mouth of the Cuyahoga, where the beautiful city of Cleveland now stands. The cross of St. George had never penetrated the wilderness so far before. Here they encamped and were soon after waited upon by messengers from the great chieftain Pontiac, asking by what right they entered upon his territory and the object of their visit. Rogers informed them of the downfall of the French in America, and that he had been sent to take possession of the French forts surrendered to the English by the terms of the capitulation. Pontiac received his message remarking that he should stand in his path until morning, when he would return to him his answer.

The next morning Pontiac came to the camp and the great chief of the Ottawas, haughty, shrewd, politic, ambitious, met face to face the bold, self-possessed, clear-headed Major of the British Rangers. It is interesting to note how calmly the astute ally of the French accepted the new order of things and prepared for an alliance with his former enemies. He and Rogers had several interviews and in the end smoked the pipe of peace. With dignified courtesy the politic Indian gave to his new friend free transit through his territory, provisions for his journey and an escort of Indian braves. Rogers broke camp on the twelfth and pushed onward towards Detroit. By messenger sent forward in advance he apprized Monsieur Belletre, Commandant of the fort, of his near approach and the object of it. The astonished officer received him Cautiously. Soon satisfied, however, of the truth of the unwelcome news thus brought, he surrendered his garrison. On the twenty-ninth of November the British flag floated from the staff which ever before had borne only the lillies of France.

On the tenth of December, after disposing of the French force found in the fort, and having taken possession of the forts Miamie and Gatanois, with

characteristic ardor Rogers pushed still farther westward for Michilimackinac. But it was a vain attempt. The season was far advanced. Indeed, the winter had already come, and while the ice prevented his progress by water, the snows rendered impracticable his advance by land. With reluctance he relinquished for the first time the completion of his mission. Turning eastward, after a tedious journey, he reached New York on the fourteenth of February, 1761.

From New York, there is reason to suppose, that he went this same year as Captain of one of the His Majesty's Independent Companies of Foot to South Carolina, and there aided Colonel Grant in subduing the Cherokees, who had for a year or two been committing depredations upon the Carolinian frontiers.

From this time onward for the next two years we lose sight of Major Rogers, but he re-appears at the siege of Detroit in 1763. Hither he went with twenty Rangers as part of a body of soldiers sent from Fort Niagara under the command of Captain Dalzell for the re-inforcement of the beleaguered fort. He arrived on the twenty-ninth of July, and on the thirty-first took an active part in the fierce battle of Bloody Bridge. His valor was as useful as it was conspicuous on that occasion, and but for his daring efforts the retreat of the British troops would have been more disastrous even than it was. Having, for a time, in the house of the Frenchman, Campean, held at bay a throng of savages which surrounded it, his escape with a few followers at one door was hardly achieved ere these burst in at another.

The next glimpse we get of Major Rogers is at Rumford (now Concord) where he had a landed estate of some four or five hundred acres. Good old Parson Walker, who here kept open house, and for more than fifty years watched with solicitude the interests of his parish and his country, says, in his diary for 1764, against date of February 24: "Major Rogers dined with us" and again December 22:—"Major Rogers and Mr. Scales, Jr., dined with me."

It is probable that his private affairs now occupied his attention. A year or so after the surrender of Montreal he was married to Elizabeth, daughter of Rev. Arthur Brown, Rector of St. John's Church, in Portsmouth, New

Hampshire. He considered this town his residence, and in papers executed this very year (1764) sometimes designates himself "as of Portsmouth," and at others, as "now residing at Portsmouth."

For three or four years, between 1762 and 1765, he trafficked a good deal in lands, buying and selling numerous and some quite extensive tracts. Some twenty-five different conveyances to him are on record in the Recorder's office of Rockingham County, and half as many from him to other parties.

Some of these lands he seems to have purchased and some to have received in consideration of military services. In 1764 Benning Wentworth, as Governor of New Hampshire, conveyed to him as "a reduced officer" a tract of three thousand acres, lying in the southern part of Vermont.

One¹⁴ conveyance made by him and bearing date December 20, 1762, arrests our attention. By it he transferred to his father-in-law, Rev. Arthur Brown, before mentioned, some five hundred acres of land in Rumford (now Concord, New Hampshire) together with "one negro man, named Castro Dickerson, aged about twenty-eight; one negro woman, named Sylvia; one negro boy named Pomp, aged about twelve and one Indian boy, named Billy, aged about thirteen." For what reason this property was thus transferred I have no means of knowing. If the object of the conveyance was to secure it as a home to his wife and children against any liabilities he might incur in his irregular life, the end sought was subsequently attained, as the land descended even to his grand-children.¹⁵

And I may as well, perhaps, just here and now anticipate a little by saying that Major Rogers did not prove a good husband, and that seventeen years after their marriage his wife felt constrained, February 12, 1778, to petition the General Assembly of New Hampshire for a divorce from him on the ground of desertion and infidelity. An act granting the same passed the Assembly on the twenty-eighth day of February and the Council on the fourth of March following.¹⁶

"Whereas, Elizabeth Rogers of Portsmouth, in the County of Rockingham, and State aforesaid, hath petitioned the General Assembly for said State, setting forth that she was married to the said Robert Rogers about seventeen years ago; for the greater part of which time he had absented himself from

and totally neglected to support and maintain her—and had, in the most flagrant manner, in a variety of ways, violated the marriage contract—but especially by infidelity to her Bed; For which reasons praying that a divorce from said Rogers, a vinculo matrimonii, might be granted. The principal facts contained in said petition being made to appear, upon a full hearing thereof. Therefore,

"Be it enacted by the Council and House of Representatives for said State in General Assembly convened, That the Bonds of Matrimony between the said Robert and Elizabeth be and hereby are dissolved."—[New Hampshire State Papers, vol. 8, p. 776.]

I may, perhaps, here venture the irrelevant remark that "women sometimes do strange things," and cite the subsequent conduct of Mrs. Rogers in evidence of the declaration. After her divorce she married Captain John Roach, master of an English vessel in the fur trade. The tradition is that, having sailed from Quebec for London, he most unaccountably lost his reckoning and found himself in Portsmouth (New Hampshire) harbor. Here for reasons satisfactory to himself, he sold the cargo on his own account and quit sea life.¹⁷ After his marriage he lived with his wife and her son by the former marriage on the estate in Concord, previously mentioned as having been conveyed by Rogers to her father. Captain Roach is said to have been most famous for his unholy expletives and his excessive potations. The venerable Colonel William Kent, now living at Concord in his nineties, says that Captain Roach one day brought into the store where he was a clerk a friend who had offered to treat him and called for spirit. Having drawn from a barrel the usual quantity of two drinks the clerk set the measure containing it upon the counter, expecting the contents to be poured into two tumblers, as was then the custom. Without waiting for this division the thirsty Captain immediately seized the gill cup and drained it. Then, gracefully returning it to the board, he courteously remarked to his astonished friend that when one gentleman asks another to take refreshment the guest should be helped first, and should there be found lacking a sufficiency for both, the host should call for more.

Whether Mrs. Rogers gained by her exchange of husbands it would be hard to say. That in 1812 she went willing from this to a land where "they neither

marry nor are given in marriage," it is easy to believe.^{[18](#)}

In returning to Major Rogers, we must not forget that he was an author as well as soldier. He seems to have been in England in 1765, and to have there published two respectable volumes of his writings. One is entitled "Journals of Major Robert Rogers; containing an account of the several excursions he made under the Generals who commanded upon the continent of North America, during the late War," and embraces the period from September 24, 1755, to February 14, 1761. It is doubtless quite reliable and valuable as a contribution to the history of our Army of the Lakes during the old French war.^{[19](#)}

An American edition of Roger's Journal, ably edited by Dr. F.B. Hough, was published at Albany in 1883, by J. Munsell's Sons. Besides a valuable introduction, it contains the whole text of the Journals, an appendix consisting largely of important official papers relating to Rogers, and a good index. It is by far the best edition of the Journals ever published.]

The other is called "a concise view of North America," and contains much interesting information relative to the country at the time of its publication.^{[20](#)}

It is less reliable than the former, but is a readable book, and, when the author keeps within the bounds of his personal knowledge, is doubtless authentic. Both works are a credit to Major Rogers. To the charge that he was an illiterate person and that these works were written by another's hand, it may be urged, as to the "journals," that the correspondence of their matter to the written reports of his expeditions made to his superior officers and now preserved in the New York State Library, convincingly show that this work is undoubtedly his. If revised before publication by a should not deprive him of the credit of their authorship.

Rogers laid no claims to fine writing, but his own manuscript reports, written mostly in camp and hastily, attest his possession of a fair chirography, a pretty good knowledge of grammar and spelling, together with a style of expression both lucid and simple; in short, these are such compositions as come naturally from a man, who, favored in youth with but a limited common school education, has in mature life mingled much with

superiors and been often called upon to draft such writings as fall to the lot of a soldier or man of business. Mr. Parkman also attributes to Rogers a part authorship of a tragedy long forgotten, entitled "Ponteach, or the Savages in America," published in London in 1766. It is a work of little merit and very few copies of it have been preserved.^{[21](#)}

On the tenth of June, 1766, at the King's command, General Gage appointed Major Rogers Captain Commandant of the garrison of Michilimackinac.^{[22](#)} Sir William Johnson, then Superintendent of Indian Affairs, when apprized of it was filled with astonishment and disgust. He regarded Rogers as a vain man, spoiled by flattery, and inordinately ambitious, dishonest, untruthful, and incompetent to discharge properly the duties of this office.^{[23](#)} But as the appointment had been made and could not be revoked, it was determined to accept the inevitable and restrict his power, thereby rendering him as little capable of mismanagement as possible. He was ordered by General Gage to act in all matters pertaining to the Indians under instructions of the Superintendent of Indian Affairs, and to report upon all other matters to the Commandant at Detroit, to whom he was made subordinate.^{[24](#)}

Commander Rogers probably reached Michilimackinac in August, 1766. He soon after demonstrated his entire unfitness for his position by clandestinely engaging in the Indian trade,^{[25](#)} and by involving the government in unnecessary expenses, which he sought to meet by drafts upon the Superintendent of Indian Affairs, which that officer was obliged to dishonor. To still further curtail his power, a Commissary was appointed to reside at the post and regulate the Indian trade. To this Rogers sullenly submitted, but quarrelled with the officer. As time went on matters grew worse. He engaged in foolish speculations; got deeply into debt to the Indian traders; chafed under his limitations; grew first discontented, and then desperate; entered into treasonable correspondence with a French officer;^{[26](#)} and finally conceived a plan of seeking of the home government an independent governorship of Michilimackinac, and in case of failure to rob his post and the traders thereabout, and then desert to the French on the lower Mississippi.^{[27](#)}

His mismanagement and plottings having grown insufferable he was arrested and conveyed in irons to Montreal in September, 1768, to be there tried by court-martial for high treason.²⁸ On some ground, probably a technical one, he escaped conviction, and at some date between May, 1769, and February, 1770, he sailed for England.

And there, strange as it may seem, the stalwart, cheeky, fine-looking, wily ex-Commandant was lionized. His acquittal had vindicated his innocence and established his claim to martyrdom. His books had advertised him as a hero. His creditors, to whom he owed considerable amounts, supported his claims in hopes thereby of getting their dues. He was gazed at by the commonalty. He was feted by the nobility. He was received by the king and allowed to kiss his hand. He claimed payment for arrears of salary and other expenses previously disallowed in England and at home, which was made. Encouraged by his successes he pushed boldly on and asked to be made an English Baronet, with £600 a year, and in addition to that, a Major in the army.²⁹ One is in doubt which to wonder at the most, the audacity of the bold adventurer, or the stupidity of the British public. But vaulting ambition had at length overleaped itself. He failed of the coveted knighthood, and sank by degrees to his true level.

We see nothing more of Major Rogers until July, 1775, when he again appears in America as a Major of the British Army retired on half pay. The object of his visit to his native land just at the beginning of our Revolutionary war was not satisfactorily apparent. Some considered him a military adventurer, anxious to sell his services to the highest bidder. Others regarded him as a British spy. He wandered over the country all the way from Pennsylvania to New Hampshire with very little ostensible business. His improbable statements, his associations with persons hostile to the American cause, his visits to places of bad reputation, as well as his whole general conduct, rendered him a suspected person.

He was arrested on the twenty-second of September following his arrival by the Pennsylvania Committee of Safety, but was afterwards paroled upon his solemn declaration and promise that "on the honor of a soldier and a gentleman he would not bear arms against the American United Colonies, in any manner whatever, during the present contest between them and

Great-Britain;"³⁰ yet, on the twenty-sixth of the next November, he makes a tender of his services to the British government, in a letter addressed to General Gage, and was encouraged to communicate more definitely his proposals.³¹

On the second day of December, a little more than a month later, in shabby garb he calls upon President Wheelock, at Hanover, New Hampshire. After speaking of his absence in Europe, during which, he said, he had fought two battles in Algiers, under the Dey, he officiously tendered his aid in a proposed effort to obtain a grant of land for Dartmouth College. The President distrusted him, but treated him civilly. At the close of the interview he returned to the tavern where he passed the night, and left the next morning without paying his reckoning.³²

Again, on the nineteenth of the same month, at Medford, Massachusetts, he addresses a letter to General Washington, soliciting an interview, but his reputation was such that the Commander-in-Chief declined to see him.³³

Even this did not discourage him. With an effrontery truly wonderful, on the twenty-fifth of June, 1776, after he had been arrested in South Amboy and brought to New York, he expressed to the Commander-in-Chief his desire to pass on to Philadelphia, that he might there make a secret tender of his services to the American Congress.³⁴

However, by this time, his duplicity had become so manifest that a few days after this interview (July 2, 1776) the New Hampshire House of Representatives passed a formal vote recommending his arrest,³⁵ which was supplemented two years later (November 19, 1778) by a decree of proscription.

Finding hypocrisy no longer available, sometime in August, 1776, he accepted a commission of Lieutenant Colonel Commandant, signed by General Howe and empowering him to raise a battalion of Rangers for the British Army. To this work he now applied himself and with success.³⁶

On the twenty-first of October, 1776, Rogers fought his last battle, so far as I have been able to discover, on American soil. His Regiment was attacked at Mamaronec, New York, and routed by a body of American troops.

Contemporary accounts state that he did not display his usual valor in this action and personally withdrew before it was over.

The next year he returned to England,³⁷ where, after a disreputable life of some twenty-two or twenty-three years, of which little is known, he is said to have died in the year 1800.

Such are some of the more salient points in the career of Major Robert Rogers, the Ranger. When another century shall have buried in oblivion his frailties, the valor of the partizan commander will shine in undimmed lustre. When the historian gives place to the novelist and the poet, his desperate achievements portrayed by their pens will render as romantic the borders of Lake George, as have the daring deeds of Rob Roy McGregor, rehearsed by Walter Scott, made enchanting the Shores of Lock Lomond.

ROUSED FROM DREAMS.

By ADELAIDE CILLEY WALDRON.

Through the gorges leaps the pealing thunder;
Lurid flashes rend the sky asunder;
On my window-pane, making wild refrain,
Sharply strikes the rain.

Wind in furious gusts with angry railing
Follows the unhappy restless wailing
Of the sobbing sea, and drives ships a-lee
None to save nor see.

Dreaming souls are startled from their slumbers,
Though sleep still their trembling frames encumbers;
Helplessly they wait, fearing portent fate,
Shrieking prayers too late!

HISTORICAL SKETCH OF FITCHBURG

By EBENEZER BAILEY.

On the opening of the year 1764 there was in the westerly part of the town of Lunenburg, Massachusetts, a settlement of about forty families, consisting of a number of farms, located mostly on the hills surrounding a narrow valley through which flowed the north branch of the Nashua River, almost screened from view by a dense forest of pines. These people were obliged to go four or five miles to Church and town meeting, over narrow, uneven roads, travelled only on horseback or rough ox carts. Most of them were of an independent, self-reliant type of character, and had a mind to have a little town and parish of their own.

Accordingly they commenced a movement for a division of the town of Lunenburg; and the first petition to have the westerly part of that town set off was presented in town meeting in 1759. At various other town meetings a like petition was presented and always rejected, until January, 1764, when it was granted, and a committee appointed to obtain an act of incorporation from the Legislature; and at last, on the third of February, 1764, the Governor of the Colony of Massachusetts Bay signed the Act, which made Fitchburg an incorporated town, with all the rights and privileges usually granted, except that the two towns of Lunenburg and Fitchburg were to have but one representative to the General Court.

A portion of the territory of Fitchburg was set off a few years later to form a part of the new town of Ashby.

The first town meeting in Fitchburg was held in the tavern of Captain Samuel Hunt, on the fifth of March, 1764, when selectmen were chosen, and other business necessary to the organization of a town government transacted. The next business after the necessary civil affairs were put in order was to provide for "Sabbath days' preaching," and the Rev. Peter Whitney was hired to preach in the house of Thomas Cowdin for a time. It

was also voted to build a meeting-house, which was completed sufficiently for occupancy in the autumn of 1766, and was located between Blossom and Mount Vernon Streets, near Crescent Street. The land was presented to the town by Thomas Cowdin, a new resident, who had purchased the tavern of Captain Samuel Hunt.

In those days the tavern keeper was a man of great importance by virtue of his calling, but Thomas Cowdin was in himself a remarkable man. Energetic and commanding by nature, his varied experience had been of a kind to call out his peculiar characteristics. A soldier in the Provincial army, he served actively in the French and Indian wars, and rose from the ranks to the office of captain. During the war of 1755 he was employed in returning convalescent soldiers to the army and in arresting deserters. At one time he was set on the track of a deserter, whom he found was making his way to New York. He followed him with characteristic celerity and promptness, and at length found him one Sabbath morning attending divine service in a Dutch meeting-house. Cowdin did not hesitate, but entered and seized the culprit at once, much to the surprise and consternation of the congregation. A severe struggle ensued, in which he barely escaped with his life, but he finally overpowered and secured his prisoner. He then took him to Boston, where he received orders to deliver him at Crown Point. So alone through the woods for that long distance he journeyed with his prisoner, who well knew the fate which awaited him; threading each day the lonely forest, and lying down each night to sleep by the side of the doomed man. He delivered his prisoner safely at Crown Point, from whence he was taken to Montreal, and shot. For many years Cowdin was one of the most influential and prominent men in Fitchburg, and enjoyed to a great degree the confidence of his fellow citizens. He was the first Representative to the General Court under the new State Constitution, and held many town offices. A handsome monument has recently been erected to his memory by his grandson, Honorable John Cowdin, of Boston.

Preaching being provided for, it was also voted to keep two schools, and to appropriate the sum of £8 for that purpose. And now the town of Fitchburg was fairly started out in life. From the towns to the East energetic young men began to come in with their families, to make new homes for themselves, so that in 1771 there were from seventy-five to eighty families,

with a total valuation of £2,508,105. The highest tax payer was taxed on a valuation of £121, and the rate was over ten per cent.

There were now, from time to time, numerous town meetings and many matters, both grave and trivial, to discuss and settle. Matters civil and matters ecclesiastical were inextricably blended. There was no separation of Church and State, but a community firmly believing in a personal Divine Providence, whose hand interposed daily in all the affairs of life. We may instance an article in the warrant for town meeting, January, 1770, which read as follows: "To see if the town will relieve Widow Mary Upton for Distress occasioned by frowns of Divine Providence, and abate her husband's rates on Isaac Gibson's and Ebenezer Bridge's tax lists." The result of the article was that Mr. Upton's poll tax was abated, and the frowns of Divine Providence were doubtless changed to smiles.

Time passed on, the town gaining in wealth and numbers, and a comfortable, prosperous future was the reasonable hope of the inhabitants; but other scenes than those of peace and quiet were preparing; the opening scenes of the Revolution were just at hand, and the curtain was about to rise on the drama of seven long years, so fraught with great results, but so wearisome, painful, and discouraging to the actors, from whom the future was withheld.

As early as September, 1768, the selectmen of Fitchburg received from the selectmen of Boston a letter requesting them to call a town meeting to take into consideration the critical condition of public affairs, and to choose an agent to meet them in Boston and show there the "views, wishes and determinations of the people of Fitchburg upon the subject." A town meeting was accordingly called, and the Honorable Edward Hartwell was sent jointly by Fitchburg and Lunenburg to be their agent in Boston.

In December, 1773 the selectmen received another letter from the town of Boston, requesting them to meet and pass such resolves concerning their rights and privileges, as they were willing to die in maintaining, and send them to the Committee of Correspondence. A town meeting was held accordingly, and a committee appointed to draft resolutions. The report presented by this committee at an adjourned meeting, after expressing full

sympathy in all efforts to resist any encroachments on the rights and liberties of the American people, concluded as follows:

"And with respect to the East India tea, forasmuch as we are now informed that the town of Boston and the neighboring towns have made such noble opposition to said teas being brought into Boston, subject to a duty so directly tending to the enslaving of America, it is our opinion that your opposition is just and equitable, and the people of this town are ready to afford all the assistance in their power to keep off all such infringement."

The time had now come when the talk at the tavern, the town meeting, the Church, and at the daily meeting of neighbor with neighbor, was of the rights of the colonies, and of the tyranny of the English Government. The fires of Liberty were already kindled from the North to the South and from the seaports to the frontier. Fitchburg was not behind in preparation for the coming storm. In the store building of Ephraim Kimball, which was near the corner of Main and Laurel Streets, was the armory of the minute men, about forty of whom were enrolled and regularly drilled; while by vote of the town fifty dollars was appropriated for powder, lead and flints.

The eventful nineteenth of April, 1775, at last arrived and found the little town ready for action. So rapidly did the news spread that at nine o'clock in the morning the alarm was fired in front of the store of Deacon Kimball. The company had spent the previous day in drill, and at the summons the members promptly assembled, and being joined by a few volunteers, about fifty men took up their line of march for Concord, under the command of Captain Ebenezer Bridge, who afterwards became Colonel, and whose regiment, in the battle of Bunker Hill, was engaged in the fiercest of the contest. With the minute men was sent a large wagon loaded with provisions, which followed them to Concord, where they arrived in the evening, too late to take any part in the fight.

It was now necessary to organize a permanent army to defend the towns around Boston; and Fitchburg and Leominster enlisted a company of volunteers to serve for eighteen months. At the battle of Bunker Hill John Gibson of Fitchburg was killed while fighting bravely in the intrenchments.

When the Continental Congress asked the support of the Colonies to the contemplated Declaration of Independence, the Massachusetts General Court sent circulars, asking the opinion of the several towns in regard to the measure. The answer of Fitchburg was as follows:

"Voted in town meeting, that if the Honorable Continental Congress should for the safety of these United Colonies declare them independent of the Kingdom of Great Britain, that we, the inhabitants of the town of Fitchburg, will, with our lives and fortunes, support them in the measure."

In February, 1776, the warrant for town meeting ran thus: "In his Majesty's name." In May the warrant ran as follows: "In the name of the writ to us directed, these are in the name of the Governor and people of Massachusetts Bay." After the declaration of independence the warrant ran thus: "In the name of the State of the Colony of Massachusetts Bay."

For seven long years the little town of Fitchburg bore bravely and unflinchingly the hardships of the war. The burden to the inhabitants of furnishing their quota of men, money, and provisions, was a heavy one, the depreciation of the currency was ruinous; and they, in common with the rest of the people, found themselves in serious financial difficulties at the close of the war. Taxes were high and money scarce, and the efforts of the authorities to collect the sums levied on the inhabitants finally led to organized resistance, which has come down to us under the name of Shay's Rebellion. With it the people of Fitchburg deeply sympathized, and in the initiatory proceedings they took an active, though a prudent part. In June, 1786, the town sent Elijah Willard as a delegate to a convention at Worcester to discuss the grievances of the people, and voted to defend his property if he should be taken in person for his attendance, "provided he

behaves himself in an orderly and peaceable manner; otherwise he is to risk it himself." Deeply sympathizing with the Shayites, the people of Fitchburg did everything in their power to prevent the collection of taxes by the authorities, short of armed resistance; and the consequence was that a military company was quartered among them, much to their indignation; and had they not soon been prudently withdrawn, bloodshed might have followed.

The population of Fitchburg had not remained stationary during the war, but had increased from 650 to about 1,000. At its close there was the nucleus of a village scattered along the road near the river, now Main Street. One might see Cowdin's tavern, Kimball's saw and grist mill, Fox's store, a baker's shop, and half a dozen houses between the American house and the upper Common. The meeting-house upon the hill back of Main street was a small, shabby, yellow structure; the red store of Joseph Fox was below, and in the rear of his store his house with large projecting eaves. The mill and residence of Deacon Ephraim Kimball were near by. Up the road, and near the present residence of Ebenezer Torrey, was a bakery and a dwelling-house, and beyond, towards the west, were two or three houses and a blacksmith shop. Pine stumps, hard-hack, and grape vines were plentiful by the side of the road. Such was the village of Fitchburg in 1786.

In addition, however, to this little centre of population there was in the westerly part of the town, in the neighborhood of Dean Hill, a village which boasted a tavern, a store, and a blacksmith shop, and boldly sat up a claim of rivalry, and even superiority, to the little cluster of houses in the sandy valley. Its people petitioned to the General Court, to be set off, with a part of Ashburnham and Westminster, into a new town. However, a vigorous opposition from the inhabitants of the remainder of the town prevented its being granted. But, defeated in one point, the Dean Hill people turned to another. The time had now come when a new Church was needed, the little old meeting-house on the hill being too small to accommodate the increased population. So they determined to have the new Church in their vicinity, and this determination was the beginning of a protracted struggle to fix upon its location. A vote was passed in town meeting that the new Church should be located "on the nearest convenientest spot to the centre," but the words *nearest*, *convenientest*, were a cause of furious contention. Town

meeting after town meeting was held—now victory rested with one faction, now with the other. Finally, after ninety-nine town meetings, extending through a period of ten years, the great question was settled, and the spot was chosen near the location of the present Unitarian Church.

But now the leaven of heterodoxy was creeping into New England society, and the people, to a great extent, turned from the theological doctrines of their forefathers and adopted Unitarian views. In most places there was a final division of the original Church, and the formation of two societies, one of the Unitarian, and the other of Orthodox persuasion.

Fitchburg was agitated in this way for about twenty-four years, during which time many ecclesiastical councils were held, and debate and dispute were almost continuous, both in and out of town meeting, for neighbor was divided against neighbor, and one member of a household against another. The result was the dissolution of the parochial powers of the town, and a division into two societies. The Unitarians remained in the old Church, and the Orthodox built a new building on the corner of Main and Rollstone streets.

But while religious contention went on, worldly growth and prosperity increased. Quite a number of manufacturing establishments had commenced operations, and the value of the little stream that furnished the power was beginning to be appreciated.

In 1830 there were in Fitchburg 235 dwelling-houses, 2 meeting-houses, 1 academy, 12 school-houses, 1 printing office, 2 woolen mills, 4 cotton mills, 1 scythe factory, 2 paper mills, 4 grist mills, 10 saw mills, 3 taverns, 2 hat manufactories, 1 bellows manufactory, 2 tanneries, 2 window blind manufactories, and 1 chair manufactory. There were a number of stone bridges, and a dozen dams on the river; stages communicated daily with Boston, Keene, and Lowell, and left three times a week for Worcester and Springfield, and returned on alternate days.

Energetic, enterprising young men were attracted to Fitchburg as a promising place for a home, and there was the exhilarating, hopeful atmosphere of a new and growing town, where changes are rapid and opportunities are many. It was about this time that Rufus C. Torrey wrote

his history of Fitchburg, in which work he was most substantially aided by his friend, Nathaniel Wood, then a public spirited young lawyer, who had already accumulated quite an amount of material from records and conversations with the older residents. These two men saved from oblivion very many valuable facts in the history of the town.

About this time, also, the Fitchburg High School Association was formed and an academy built, and in 1838 the Fitchburg Library Association was organized, both of which institutions were valuable educational influences.

From 1840 to 1860 the town continued to grow steadily. New paper mills were built in West Fitchburg, the chair business enlarged greatly, the iron business was introduced by the Putnam Brothers, and grew rapidly, and various other branches of industry were begun and prospered. The Fitchburg Railroad was built, followed by the Vermont and Massachusetts, the Fitchburg and Worcester, and the Agricultural Branch Railroads, all centreing in Fitchburg and bringing an increase of business.

At the breaking out of the war of the Rebellion the town contained nearly 8,000 inhabitants, and during the war Fitchburg did her part, answering all calls promptly and sending her best men to the field. Her history in that contest is well told by Henry A. Willis, in his history of "Fitchburg in the War of the Rebellion." Nine companies were organized in the town, and 750 Fitchburg men sent into the field.

The years immediately following the war were years of prosperity and rapid growth. March 8, 1872, Fitchburg was incorporated as a city. The infant township of 108 years before had grown to a city of 12,000 inhabitants. The little stream which then turned the wheel of the one solitary saw and grist mill had since been harnessed to the work of many mills and manufactories, and on either side were the homes of hundreds, dependent on its power for their daily bread. Railroads carried the products of these establishments to the limits of our own and to foreign countries, and brought to the busy city from the East and from the West all the necessities and all the luxuries of life. Can it be that the dead of past generations, who sleep on the hillside which overlooks the valley, have seen this transformation, and if so, will they behold all the changes of the future? Then may this and the coming

generations prove themselves worthy of those who, during the years that have passed, have been its bone and sinew and life blood.

SUNDAY TRAVEL AND THE LAW.

By CHESTER F. SANGER.

The Legislature of 1884 has placed an act upon our statute book which rounds out and completes an act looking in the same direction passed by the Legislature of 1877. Chapter 37 of the Acts of 1884 provides that "The provisions of chapter ninety-eight of the Public Statutes relating to the observance of the Lord's day shall not constitute a defence to an action for a tort or injury suffered by a person on that day."

Chapter 232 of the Acts of 1877 provided that common carriers of passengers should no longer escape liability for their negligence in case of accidents to passengers, by reason of the injury being received on Sunday. This act marked a long step forward in the policy of this Commonwealth, and made it no longer possible for a corporation openly violating the law to escape the consequences of its illegal acts by saying to the injured passenger, "You were breaking the law yourself, and therefore you have no redress against us."

This was a condition of things which worked a confusion of relations, and lent "doubtful aid to morality;" resting on "no principle of justice" or law, and creating a "species of judicial outlawry which ignored alike the principles of humanity and the analogies of the law."

The provisions more particularly referred to in these Acts are those relating to travelling on the Lord's day, found in the Statutes as follows:—

"Whoever travels on the Lord's day, except from necessity or charity, shall be punished by fine not exceeding ten dollars for each offence."—Pub. Stat., Chap. 98, sect. 2. It is an interesting and curious study to follow the changes made in the Sunday law, so called, with the accompanying judicial decisions, as one by one the hindrances to the attainment of simple justice by travellers injured on the Lord's day have been swept away.

The Pilgrims brought many strange ideas with them to their new home, as we all well know, and we find these reflected in their statute books in the form of many "blue laws," some of which may yet be found in changed garb in the form of constantly disregarded "dead letter" laws in our own Public Statutes. Interesting as a general discussion of this subject is, as showing the character and purposes of the founders of the Republic, we can follow but one division of the Sunday law in its various forms since it was first framed by our "Puritan ancestors, who intended that the day should be not merely a day of rest from labor, but also a day devoted to public and private worship and to religious meditation and repose, undisturbed by secular cares or amusements," and among whom were found some who thought death the only fit punishment for those who, as they considered it, "prophaned" the Lord's day.

As early as 1636 it was enacted by the Court of the Plymouth Colony that, "Whereas, complaint is made of great abuses in sundry places of this Government of prophaning the Lord's day by travellers, both horse and foot, by bearing of burdens, carrying of packs, etc., upon the Lord's day to the great offence of the Godly welafected among us. It is, therefore, enacted by the Court and the authoritie thereof that if any person or persons shall be found transgressing in any of the precincts of any township within this Government, he or they shall be forthwith apprehended by the Constable of such a town and fined twenty shillings, to the Collonie's use, or else shall sit in the stocks four hours, except they can give a sufficient reason for their soe doeing; but they that 'soe transgresse' must be apprehended on the Lord's day and 'paye their fine or sitt in the stockes as aforesaide' on the second day thereafter." It seems, however, that in spite of the pious sentiments of the framers of the law it was not, or could not be enforced, for in 1662 it was further enacted that "This Court doth desire that the transgression of the foregoing order may be carefully looked into and p'r'vented if by any due course it may be."

But even now it seems that the energies of the law-makers were of no avail in preventing prophanation of the Holy day by "foreignors and others," so that twenty years later, in 1683, we find that "To prevent prophanation of the Lord's day by foreignors or any others unessesary travelling through our Townes on that day. It is enacted by the Court that a fitt man in each Towne

be chosen, unto whom whosever hath nessesity of travell on the Lord's day in case of danger of death, or such necessitous occations shall repaire, and makeing out such occations satisfyingly to him shall receive a Tickett from him to pas on about such like occations;" but, "if he attende not to this," or "if it shall appeare that his plea was falce," the hand of the law was likely to fall upon him while he contributed twenty shillings "to the use of the Collonie."

In the Massachusetts Bay Province it was early enacted that "no traveller ... shall travel on the Lord's day ... except by some adversity they are belated and forced to lodge in the woods, wilderness, or highways the night before, and then only to the next inn," under a penalty of twenty shillings.

In 1727 it was found that notwithstanding the many good and wholesome laws made to prevent the "prophanation of the Lord's day," this same "prophanation" was on the increase, and so it was enacted that the penalty for the first offense should be thirty shillings, and for the second, three pounds, while the offender, presumably a "foreignor," was to be put under a bond to observe the Sabbath day and keep it holy according to the ideas of the straight-laced Puritans.

Even this did not put an end to the good fathers' troubles, for in 1760, "whereas, by reason of different constructions of the several laws now in force relating to the observation of the Lord's day or Christain Sabbath, the said laws have not been duly executed, and notwithstanding the pious intention of the legislators, the Lord's Day hath been greatly and frequently prophaned" all the laws relating to the observance thereof were repealed and a new chapter enacted, one section of which, and the only one in which we are now interested, was the same as the law of 1727, above quoted.

Thirty-one years later all these laws were again erased from the statute book and a new attempt was made to frame a law which should leave no loop-holes for foreignors or others, as follows: "Whereas the observance of the Lord's day is highly promotive of the welfare of a community by affording necessary seasons for relaxation from labor and the cares of business; for moral reflections and conversation on the duties of life, and the frequent errors of human conduct; for public and private worship of the Maker, Governor, and Judge of the world; and for those acts of charity which

support and adorn a Christian society. Be it enacted that no person shall travel on the Lord's day except from *necessity* or *charity*, upon penalty of a sum not exceeding twenty shillings and not less than ten." Notice what an interesting and moral tone is given to the otherwise dry statute book by these sermonizing preambles which reflect so well the motives and aims of the men who moulded and formed the statute laws of the Commonwealth.

In this act appears for the first time that "charity" which since then has truly "covered a multitude of sins," while it has as often been a strong tower of defence to corporations clearly shown to have been careless of their obligations to the public. One of the first cases to arise in which these words "necessity or charity" must be judicially construed was *Commonwealth vs. James Knox*, 6 Mass., 76.

One Josiah Paine had contracted with the Post Master General of the United States to carry the public mail between Portland and Boston on each day of the week for two years from October 1, 1808, and Knox, his servant, was indicted for unlawfully travelling while carrying the mail with a stage carriage through the town of Newburyport on November 20, 1808, the same being Sabbath or Lord's day, and the said travelling not being from necessity or charity. Chief Justice Parsons in delivering the opinion of the Supreme Court, after showing the authority of Congress under the Constitution to establish post-offices and post-roads, and the consequent legality of Paine's contract, the statute of his State notwithstanding, says that "necessity ... cannot be understood as a physical necessity ... and when this travelling is necessary to execute a lawful contract it cannot be considered as unnecessary travelling, against the prohibition of the Statute." But fearing that this decision may open too wide the gate to Sabbath breakers the Chief Justice hastens to add: "But let it be remembered that our opinion does not protect travellers in the stage coach, or the carrier of the mail in driving about any town to discharge or to receive passengers; and much less in blowing his horn to the disturbance of serious people either at public worship or in their own houses. The carrier may proceed with the mail on the Lord's day to the post-office; he may go to any public house to refresh himself and his horses; and he may take the mail from the post-office and proceed on his route. *Any other liberties on the Lord's day our opinion does not warrant.*"

The report naively says, that after this opinion the Attorney General entered a *nolle prosequi*.

In *Pearce vs. Atwood*, 13 Mass., 324, a case which arose in 1816 and which attracted a great deal of notice at the time, Chief Justice Parker says: "It is not necessary to resort to the laws promulgated by Moses, in order to prove that the *Christian Sabbath* ought to be observed by *Christians*, as a day of holy rest and religious worship; and if it were it would be difficult to make out the point contended for from that source;" and then goes into a long disquisition upon the Mosaic law and the precepts of the Saviour and finally says that "cases often arise in which it will be both innocent and laudable for the most exemplary citizen to travel on Sunday. Suppose him suddenly called to visit a child, or other near relative, in a distant town laboring under a dangerous illness; or suppose him to be a physician; or suppose a man's whole fortune and the future comfort of his family to depend upon his being at a remote place early on Monday morning, he not having known the necessity until Saturday evening; these are all cases which would generally be considered as justifying the act of travelling." Certainly a somewhat broader view than that taken by the Court seven years earlier.

The law remained thus and was re-enacted in the Revised Statutes of 1836, the penalty being raised, however, to ten dollars. In civil cases arising out of damages sustained by travellers upon the Lord's day, corporations defendant were quick to take advantage of the law and to rely upon the illegality of the plaintiff's act of travelling, as a good defence to his action.

In 1843 arose the case of *Bosworth vs. Inhabitants of Swansey*, 10 Metcalf, 363. Bosworth was travelling on the eleventh of June of that year, being Sunday, from Warren, Rhode Island, to Fall River on business connected with a suit in the United States Court, and was injured by reason of a defect in a highway in Swansey.

The defendant town admitted that it was by law required to keep the highway in repair. And plaintiffs counsel argued that as the statute provided a penalty of ten dollars for travelling on Sunday it could not be further maintained that there was the additional penalty that a man could have no legal redress for damages suffered by reason of the neglect or refusal of defendants to do that which the law required them to do. But the court

ruled, Chief Justice Shaw delivering the opinion, "that the plaintiff was plainly violating the law and that since he could recover from the town only, if free from all just imputation of negligence or fault," in this case he could recover nothing. In deciding this case, however, the Court was not called upon to construe the terms "necessity or charity," as affecting the liability of corporations plainly shown to be negligent in the performance of their duties to others; but many such cases soon arose.

In *Commonwealth vs. Sampson*, Judge Hoar said, "the definition which has been given of the phrase necessity or charity ... that it comprehends all acts which it is morally fit and proper should be done on the Sabbath may itself require some explanation. To save life, or prevent or relieve suffering; to prepare useful food for man and beast, to save property, as in case of fire, flood, or tempest ... unquestionably fall within the exception ... But if fish in the bay, or birds on the shore, happened to be uncommonly abundant on the Lord's day, it is equally clear that it would furnish no excuse for fishing or shooting on that day. How it would be if a whale happened to be stranded on the shore we need not determine." It is needless to remark that this was a decision affecting the interests of a town upon the coast.

In *Feital vs. Middlesex R.R. Co.*, 109 Mass., 398, plaintiff was injured while returning from a Spiritualist meeting in Malden, and counsel for defendant maintained that the meeting was attended for idolatry and jugglery, and while it might be the right of the plaintiff to be an idolater and to attend shows, yet she could not do so in violation of the Statute, which was intended to protect the conscience of the majority of the people from being offended upon the Lord's day. But the Court ruled that it could not be said as matter of law that travelling for such a purpose was not within the exception, and that it must be left to the jury to say if the plaintiff was in attendance in good faith for devotional exercise as matter of conscience.

In *How vs. Meakin*, 115 Mass., 326, the court held that it was not a violation of the law to hire a horse and drive to a neighboring town to attend the funeral of plaintiff's brother.

But it was held in a later case that plaintiff, who had been to a funeral on the Lord's day and was returning therefrom by a somewhat *circuitous* route for the purpose of calling upon a relative, was not entitled to recover for

damages sustained by reason of a defect in the highway. This was the opinion of a divided court as has been the case in several decisions where the question of "necessity or charity" has been a close one.

Such are a few of the interesting cases which have arisen in our Courts involving discussion of the law originally framed in 1636, and which still makes it a criminal offence punishable by a fine of ten dollars to walk or ride upon the Lord's day, save from necessity or charity, while our cities furnish free concerts and license all sorts of performances in places of public amusement under the guise of "sacred" concerts, upon the day which our fathers thought and meant should be set apart for moral reflection ... on the duties of life ... and for public and private worship of the Maker, Governor, and Judge of the world.

ELIZABETH.

A ROMANCE OF COLONIAL DAYS.

BY FRANCES C. SPARHAWK, Author of "A Lazy Man's Work."

CHAPTER VI.

THE STAB IN THE BACK.

A brighter morning for a wedding never dawned. The house was alive with merry voices and the echo of footsteps hurrying to and fro. The most fashionable society of the city was to be present at the ceremony which was to take place at noon. Then would come the festivities, the feast, the dancing, and after that the drive of the newly-married pair to the beautiful house three miles away, that Stephen Archdale had built and furnished for his bride, and that had never yet been a home.

Before the appointed hour the guests began to arrive and to fill the great drawing-room. There each one on entering walked toward the huge fireplace, in which on an immense bed of coals glowing with a brilliancy that outshone the rich red furniture and hangings of the room lay great logs, which blazed in their fervor of hospitable intent and radiated a small circle of comfort from the heat that did not escape up the chimney. The rich attire of the guests could bear the bright sunlight that streamed in through the numberless little panes of the windows, and the gay colors that they wore showed off well against the dark wainscotting of the room and its antique tapestries. The ladies were gorgeous in silks and velvets which were well displayed over enormous hoops. On their heads, where the well-powdered hair was built up in a tower nearly a foot in height, were flowers or feathers. Precious stones fastened the folds of rich kerchiefs, sparkled on dainty fingers, or flashed with stray movements of fans that, however discreetly waved, betrayed their trappings once in a while by some coquettish tremulousness. The gentlemen were resplendent also in gold-laced coats and small clothes, gold, or diamond shoe buckles, powdered wigs and queues, and with ruffles of the richest lace about their wrists. These guests, who were among the people that in themselves, or their descendants, were

destined to give the world a new nation, strong and free, showed all that regard to the details of fashion said to characterize incipient decay in races. But with them it was only an accessory of position, everything was on a foundation of reality, it all represented a substantial wealth displaying itself without effort. The Sherburnes were there, the Atkinsons, the Pickerings, Governor Wentworth, the first of the Governors after New Hampshire separated from Massachusetts and went into business for itself, and others of the Wentworth family. Conspicuous among the guests was Colonel Pepperrell who had already proved that the heart of a strong man beat under his laced coat. His wife, well-born and fine-looking, was beside him, and his son, fresh from College honors, and sipping eagerly the sparkling draught of life that was to be over for him so soon; his daughter also, last year a bride, and her husband. These were leaders in that brilliant assembly called together to the marriage of Katie and Stephen Archdale.

While waiting for the event of the morning they talked in low tones among themselves of the wedding, or more audibly, of personal, or of political affairs.

"It wants only ten minutes of the hour," said one lady, "perhaps our good parson may not come this morning."

"What do you mean?" asked her companion.

"Why, this; that his wife, perhaps, will lock his study door upon him as she did one Sabbath when we all went to the house of God and found the pulpit empty. There's no end to all the malicious tricks she plays him. Poor, good man."

"Do you know," said a beruffled gentleman in another part of the room to his next neighbor, "what a preposterous proposal that ragged fellow, Bill Goulding, made to Governor Wentworth last week? He is a good-for-nothing, and the whole scheme is thought to have been merely a plan to talk with the Governor, whom he has wanted to see for a long time. It gave him access to the fine house, and he stalked about there an hour looking at the pictures and the splendid furniture while its owner was taking an airing. The general opinion is that the object of his visit was accomplished before his Excellency's return."

"Poor fellow! One can't blame him so very much," returned the listener with a complacent smile, offering his gold-mounted snuff-box to the speaker before helping himself generously from it. "But what was his scheme?"

"Something the most absurd you ever listened to. He proposed, if other people would furnish the money, to establish a public coach from this city to Boston, to run as often as once a week, and, after the first expense, to support itself from the travellers it carries; each one is to pay a few shillings. Where did he expect the travellers to come from? Gentlemen would never travel in other than private conveyances?" And these representatives of conservatism threw back their heads and laughed over the absurdity of the lightning express in embryo. Governor Wentworth standing before the fire was commenting on some of Governor Shirley's measures, giving his own judgment on the matter, with a directness more bold than wise, and the circle about him were discussing affairs with the freedom of speech that Americans have always used in political affairs, when a stir of expectation behind them made them take breath, and glance at the person entering the room. It was the minister.

"He has come, you see," whispered the lady to her neighbor of the forebodings. After greeting him, the group about the fire went back to their discussions. It had been the good parson's horse then, which they had heard tearing up the road in hot haste; they had not dreamed that so much speed was in the nag. But Master Shurtleff was probably a little late and had been afraid of keeping the bride and groom waiting for him. Master and Mistress Archdale were there; all the company, indeed, but the four members of it most important that morning, Katie and Stephen, the bridesmaid, Mistress Royal, and the best man, a young friend of Archdale's. After a few moments in which conversation lagged through expectancy, the door opened again.

"Ah! here they are. No, only one, alone. How strange!"

Every eye was turned upon Elizabeth Royal as she came in with a face too concentrated upon the suggestion under which she was acting to see anything about her. Without sign of recognition she glanced from one to another, until her eyes fell upon good Parson Shurtleff watching her with a gentle wonder in his face. It was for him that she had been looking. She

went up to him immediately, and laid a tremulous hand upon his arm. She tried to smile, but the effort was so plain and her face so pale that an anxiety diffused itself through the assembly; it was felt that her presence here alone showed that something had happened, and her expression, that it was something bad. She did not seem even to hear the minister's kind greeting, and she was as little moved by the wonder and scrutiny about her as if she had been alone with him. At Mistress Archdale's reiterated question if Katie were ill, she shook her head in silence. Some thought held her in its grasp, some fear that she was struggling to speak.

"It is a cruel jest," she cried at last, "but it must be only a jest. The man's horse is blown, he came so fast. And he insisted on seeing me and would give this only into my own hands; his message was that it was life and death, that I must read it at once before the—" She stopped with a shudder, and held out a paper that she had been grasping; it was crumpled by the tightening of her fingers over it. There was a sound of footsteps and voices in the hall; the minister looked toward the door, and listened. "You must read it now, this instant, before they come in," cried Elizabeth: "it must be done; I don't dare not to have you; and tell me that it has no power, it is only a wicked jest; and throw it into the fire. Oh, quick, be quick."

Parson Shurtleff unfolded the paper with the haste of age, youth's deliberateness, and began to read at last. At the same instant a hand outside was laid on the latch of the door. The room was in a breathless hush. The door was swung slowly open by a servant and the bride and bridegroom came in, stopping just beyond the threshold as Katie caught sight of Elizabeth, and with a wondering face waited for her to come to her place. But the minister, not glancing up, went sternly on with the paper; and Elizabeth's gaze was fixed on his face; she had drawn a step away from him; and her hands were pressed over one another. All at once he uttered an exclamation of dismay, and turned to her, a dread coming into his face as he met her eyes.

"What does it mean?" he gasped. "Heaven help us, is it true?"

"Oh, it can't be, it can't be," she cried. "Give me the paper. I had to show it to you, but now you've seen that it must be all false. Give it to me. Look, they are coming," she entreated. "Think of her, be ready for them. Oh, burn

this. Can't you? Can't you?" and her eyes devoured him in an agony of pleading.

"Stop!" he said, drawing back his hand. Then in a moment, "Is any of it true, this wicked jest at a sacred thing? Was that all so?"

"Yes."

By this time the scene had become very different from the programme so carefully arranged. The bride and groom had indeed gone across the room and were standing before the minister. But the latter, so far from having made any preparations to begin the ceremony, stood with his eyes on the paper, his face more and more pale and perplexed.

"What is it?" cried Master Archdale, laying a hand on his shoulder.

"Yes, what does it all mean?" asked the Colonel, advancing toward the minister, and showing his irritation by his frown, his flush, and the abruptness of his speech usually so suave.

"I hardly know myself," returned Shurtleff looking from one to the other.

"Let us have the ceremony at once, then," said Master Archdale authoritatively. "Why should we delay?"

"I cannot, until I have looked into this," answered the minister in a respectful tone.

"Nonsense," cried the Colonel with an authority that few contested. "Proceed at once."

"I cannot," repeated the minister, and his quiet voice had in it the firmness, almost obstinacy, that often characterizes gentle people. His opposition had seemed so disproportioned and was so gently uttered that the hearers had felt as if a breath must blow it away, and interest heightened to intense excitement when it proved invincible.

"What is all this?" demanded Stephen, holding Katie's arm still more firmly in his own and facing Mr. Shurtleff with eyes of indignant protest. As he

received no immediate answer, he turned to Elizabeth. "Mistress Royal," he said, "can you explain this unseemly interruption?"

Then all the company, who for the moment had forgotten her share in the transaction, turned their eyes upon her again.

"That wicked jest that we had all forgotten," she said, looking at him an instant with a wildness of pain in her eyes. Then she turned to Katie's fair, pale face full of wonder and distress at the unguessed obstacle, and with a smothered cry dropped her face in her hands, and stood motionless and unheeded in the greater excitement. For now Mr. Shurtleff had begun to speak.

"You ask me," he said, "why I do not perform the ceremony and marry these two young people whose hearts love has united. I do not dare to do it until I understand the meaning of this strange paper I hold in my hand. What do you remember," he said to Stephen, "of a singular game of a wedding ceremony played one evening last summer?"

The young man looked uncomprehending for a moment, then drew his breath sharply.

"That?" he said, "Why, that was only to give an example of something we were talking about; that was nothing. Mistress,"—he stopped and glanced at Elizabeth who, leaning forward, was hanging upon every word of his denial as if it were music—"Mistress Royal knows that was so."

"Yes," cried Elizabeth, "indeed I do."

"Nevertheless," returned Mr. Shurtleff, "it may have been a jest to be eternally remembered, as all light-minded treatment of serious matters must be. I hope with all my heart that a moment's frivolity will not have life-long consequences of sorrow, but I cannot proceed in this happy ceremony that I have been called here to perform until the point is settled beyond dispute."

"See how habit rules him like a second nature," whispered Colonel Pepperrell aside to the Governor. "Nobody but a minister would stop to give a homily with those poor creatures before him in an agony of suspense."

"My dear," said his wife softly in a tone of reproof, laying her hand warningly on his arm.

"Stephen Archdale isn't the man to stand this," retorted the Governor in a higher key than he realized. But the words did not reach their object, for he had already laid hold of the paper in Mr. Shurtleffs hand.

"If this paper explains your conduct, give it to me," he said haughtily.

The other drew back.

"I will read it to you and to the company," he answered. "There can be no wedding this morning. I trust there will be soon. But first it is my personal duty to look into this matter."

Katie, whose face had grown rigid, swung heavily against Stephen.

"She has fainted," her mother cried coming forward.

"Take her away," commanded the Colonel. "This is no place for her." But the girl clung to Stephen.

"I will stay," she said, with a tearless sob. "I must listen. I see it all, and what he meant, too, that evil man."

"Master Shurtleff," cried the Governor, "I command you to make all this clear to us at once. If that paper in your hand tells us the cause of your refusal to marry these young people, I bid you read it to us immediately."

The parson, bowing with respect, cleared his throat and began, premising that Governor Wentworth's commands had been his own intention from the first.

"It is a confession," he said, "made by one whom many of us have welcomed to our homes as a gentleman of blameless character and honorable dealing. Why it was sent to Mistress Royal instead of to Master Archdale, or the bride, I am at a loss to understand."

Elizabeth raised her head with a flash in her eyes, but anger died away into despair, and she stood silent with the others, and listened to the fate that fell upon her with those monotonous tones, each one heavy as lead upon her heart. She wondered if it had been sent to her because it had been feared that Stephen Archdale would keep silence.

CHAPTER VII.

CONFESSION.

"I write without knowing to whom I am writing," began the paper, "except that among the readers must be some whom I have wronged. I can scarcely crave forgiveness of them, because they will surely not grant it to me. I don't know even that I can crave it of Heaven, for I have played with sacred things, and used a power given me for good, in an evil way, to further my own devices, and, after all, I have not furthered them. I am a man loving and unloved, one who has perhaps thrown away his soul on the chance of winning earthly joy,—but such joy,—and has lost it. If any have ever done like me, let them pity and pardon. I appeal to them for compassion. I shall receive it nowhere else, unless it be possible, that the one for love of whom I have done the wrong will out of the kindness of her heart spare me by and by a thought of pity for what was the suggestion of a moment and acted on —"

"Skip all that maundering," interrupted Stephen. "To the point. Who is this man, and what has he done? Let him keep his feelings to himself, or if they concern you, they don't us."

"No, no, Stephen. Fair play," called out Governor Wentworth. "Let us hear every word, then we can judge better of the case, and of the writer's truthfulness."

"Yes, you are right," answered the young man pressing Katie's arm more firmly in his own to give silent vent to his impatience and his defiance.

"And acted on without premeditation," resumed Master Shurtleff. "I left England early in the spring, and coming to this worthy city of Portsmouth with letters of introduction to Master Archdale, and others, I met the

beautiful Mistress Archdale. From the first hour my fate was sealed; I loved her as only a man of strong and deep emotions can love, with a very different feeling from the devotion her young admirers gave her, ardent though they considered themselves. I had many rivals, some the young lady herself so disapproved that they ceased troubling me, even with their presence at her side. Among the others were only two worthy of attention, and only one whom I feared. I was reticent and watched; it was too soon to speak. But as I watched my fear of that one increased, for age, association, a sternness of manner that unbent only to her, many things in him showed me his possibilities of success. With that rival out of my path, my way to victory was clear. There came a day when, without lifting my finger against him, I could effectually remove him. I did it. It was unjustifiable, but the temptation rushed upon me suddenly with overwhelming force, and it was irresistible, for opposite me sat Katie, more beautiful and lovable than ever, and beside her was my rival, her cousin, with an air of security and satisfaction that aroused the evil in me. It was August; we were on the river in a dead calm, and at Mistress Archdale's suggestion had been telling stories for amusement. Mine happened to be about a runaway match, and interested the young people so much, that when I had finished they asked several questions; one was in reference to a remark of mine, innocently made, that the marriage ceremony itself, pure and simple, was something unimaginably short. The story I had told illustrated this, and some of the party asked me more particularly as to what the form was. Then I saw my opportunity, and I took it. 'If one of the young ladies will permit Master Archdale to take her hand a moment,' I said, 'I think I can recollect the words; I will show you how short the formula may be.' Master Archdale was for holding Katie's hand, but happily, as it seemed to me at the moment, she was on the wrong side. I requested him to take the lady on the other hand, who seemed a trifle unready for the jest, but was induced by the entreaties of the others, and especially of Mistress Katie herself. I went through the marriage service over them as rapidly as I dared, my voice sounding to myself thick with the beating of my heart. But no one noticed this; of course, it was all fun. And so that summer evening, all in fun, except on my part, Stephen Archdale and Elizabeth Royal were made man and wife, as fast as marriage vows could make them. Nothing was omitted that would make the ceremony binding and legal, not even its performance by a clergyman of the Church of England."

A cry of rage and despair interrupted the reader. But he went on directly.

"No one in America knew that I had been educated for the Church and had taken orders, though I have never preached except one month; the work was distasteful to me, and when my brother died and I inherited my grandfather's property, I resigned my pastorate at once. This act shows how unfit for it I was. But whatever my grief may be, my conscience commands me to forbid this present marriage, and to declare with all solemnity, that Stephen Archdale already has a wife, and that she is that lady, who, until she opened my letter, believed herself still Mistres Royal."

A burst of amazement and indignation, that could no longer be repressed, interrupted the reading. Faces and voices expressed consternation. To this confession had been added names and dates, the year of the writer's entrance into the ministry, the time and place of his brief pastorate, everything that was necessary to give his statement a reliable air, and to verify it if one chose to do so. It was evident that there could be no wedding that morning, and as the truth of the story impressed itself, more and more upon the minds of the audience, a fear spread lest there could be no wedding at all, such as they had been called together to witness. For, if this amusement should turn out to have been a real marriage, what help was there? It was in the days when amusements were viewed seriously and were readily imagined to lead to fatal consequences. Had Stephen Archdale really married? The people in the drawing-room that December morning were able men and women, they were among the best representatives of their time, an age that America will always be proud of, but they held marriage vows so sacred, that even made in jest there seemed to be a weight in them. Proofs must be found, law must speak, yet these people in waiting feared, for their part in life was to be so great in uprightness and self-restraint, that these qualities flowing through mighty channels should conquer physical strength and found a nation. To do a thing because it was pleasant was no part of their creed,—although, even then, there were occasional examples of it in practice.

That winter morning, therefore, the guests were ready to inveigh against the sin of unseemly jesting, to hope that all would be well, and to shake their heads mournfully.

"Harwin!" cried Master Archdale as he heard the name of the writer; "it seems impossible. I liked that man so much, and trusted him so much. I knew he loved my little girl, but I thought it was with an honorable love that would rejoice to see her happy. No, no, it cannot be true. We must wait. But matters will come right at last."

"Yes," assented the Colonel across whose face an incomprehensible expression had passed more than once during the reading; "it will all come right. We must make it so."

A hum of conversation went on in the room, comment, inquiry, sympathy, spoken to the chief actors in this scene, or if not near enough to them for that, spoken to the first who were patient enough to listen instead of themselves talking.

In the midst of it all Stephen raised his head, for he had been bending over Katie who still clung to him, and asked when the next ship left for England.

"In about three weeks," answered Col. Pepperrell, "and we will send out a person competent to make full inquiries; the matter shall be sifted."

"I shall go," returned Stephen. "I shall make the necessary inquiries myself, it will be doing something, and I may find the man. We need that he should be found, Katie and I."

Elizabeth drew back still more; some flash of feeling made the blood come hotly to her face for a moment, then fade away again.

Katie looked up, turned her eyes slowly from one to another, finding everywhere the sympathy she sought.

"Go, Stephen, since you will feel better," she said, "but it's of no use, I am sure. I understand now something Master Harwin said to me when he left me. I did not know then what he meant. He has taken you away from me forever." And with a sob, again she hid her face upon his shoulder. Then, slowly drawing away from him, she turned to Elizabeth, and in her eyes was something of the fury of a jealous woman mixed with the bitter reproach of friendship betrayed.

"How could you," she said, "how could you consent to do it?"

She had drawn toward Elizabeth every gaze and every thought in the room; she had pointed out the substitute on whom might be emptied those vials of wrath that the proper object of them had taken care to escape. Elizabeth heard on all sides of her the whispered, "Yes, how could she do it, how could she consent to do it?" Suddenly she found herself, and herself alone, as it seemed, made responsible for this disaster; for the feeling beginning with Katie seemed to grow, and widen, and widen, like the circles of water into which a stone is thrown, and she was condemned by her friends, by the people who had known her and her father, condemned as false to her friendship, as unwomanly. Katie she could forgive on account of her misery, but the others! She stood motionless in a world that she had never dreamed of. These whispers that her imagination multiplied seemed to roar in her ears. But innocence and pride kept her erect, and at last made her raise her eyes which had fallen and grown dim under the blow of Katie's words. She swept them slowly around the room, turning her head slightly to do it. Not a look of sympathy met her. Then, in the pain, a power awoke within her.

"It is no less a disaster to me," she said. Her words fell with the weight of truth. She had kept back her pain, no one thought of pitying her as Katie was pitied, but she was vindicated.

"Does she hate him, do you suppose?" asked Madam Pepperrell in a low tone of Governor Wentworth at her elbow.

"It is not probable she loves him much," replied that gentleman studying the girl's haughty face. "I don't envy her, on the whole, I don't envy either of them." By George, madam, it *is* hard."

"Very hard," assented Colonel Pepperrell, whose glance, having more penetration, had at last brought a look of sympathy to his face. "Let us go up to the poor thing, she stands so alone, and I'm not clear that she has not the worst of it."

"Oh, no, indeed, not that," returned his wife as they moved forward. But before they could reach her, being stopped by several who spoke to them, there was a change in the group in that part of the room. Katie had fallen,

and there was a cry that she had fainted. Stephen stooped over her, lifted her tenderly, and carried her from the room. He was followed by Mistress Archdale and his own mother. As he passed Elizabeth their eyes met, his glowed with a sullen rage, born of pain and despair, they seemed to sweep her with a glance of scorn, as she looked at him it seemed to her that every fibre of his being was rejecting her. "You!" he seemed to be saying with contemptuous emphasis. In answer her eyes filled him with their haughtiness, they and the scornful curl of her lip, as she stood motionless waiting for him to pass, haunted him; it seemed to him as if she felt it an intrusion that he should pass near her at all. He still saw her face as he bent over Katie.

[TO BE CONTINUED.]

GOVERNOR CLEVELAND AND THE ROMAN CATHOLIC PROTECTORY.

BY CHARLES COWLEY, LL.D.

It is not often that a Governor's objections to a measure, which his veto has defeated, become, even indirectly, the subject of judicial consideration. Such, however, has been the experience of Governor Cleveland in connection with his veto of the appropriation, which was made in 1883, to the Roman Catholic Protectory of the City of New York. And it must be gratifying to him as a constitutional lawyer, to see the principles of that veto entirely approved by all the judges of the Court of Appeals, as well as by all the judges by whom those principles were considered, before the case, in which they were involved, reached that august tribunal, the highest in the judicial system of that State.

By an amendment to the Constitution of New York, adopted in 1874, it is provided that, "Neither the credit nor the money of the State shall be given, or loaned to, or in aid of, any association, corporation, or private undertaking."

It would hardly seem possible to mistake the meaning of a prohibition like this; but this prohibition is accompanied by the following modification: "This section shall not, however, prevent the Legislature from making such provision for the education and support of the blind, the deaf and dumb, and juvenile delinquents, as to it may seem proper; nor shall it apply to any fund or property, now held by the State for educational purposes."

The question, how far this qualifying clause limits the proceeding prohibition, arose first in the Court of Common Pleas, and afterwards in the Court of Appeals, in the case of the Shepherd's Fold of the Protestant Episcopal Church vs. The Mayor, Aldermen and Commonalty of the City of New York.³⁸ The Attorney-General of the State had given an official opinion, tending to the conclusion that the prohibition is almost entirely

neutralized by the modification. The Judges of the Court of Common Pleas, and the lawyers who argued this case in either court, differed widely upon the question, whether money raised by local taxation by the City of New York, under the authority of the State law, for the maintenance of the children of the Shepherd's Fold, was, or was not, "money of the State," and therefore included in the terms of this prohibition; and when one sees how much is done in the discussions of the able counsel before the Court of final resort, and by the learned opinion of Judge Rapello, to reconcile these differences, one can not but wish that the Old Bay State had a similar Court of Appeals, to revise and clarify the decisions of her Supreme Court. About twenty-five per cent, of all the decisions of the General Terms of the Supreme Court, Superior Court, and Court of Common Pleas, which are carried to the Court of Appeals, are there reversed; and can any lawyer doubt that, at least, as large a proportion of the decisions of our Supreme Judicial Court ought also to be revised and reversed?

The Court of Appeals says: "It seems to us that that section [to wit, the prohibition above quoted] had reference to money raised by general taxation throughout the State, or revenues of the State, or money otherwise belonging to the State treasury, or payable out of it."

The money claimed by the Shepherd's Fold being raised by local taxation for a local purpose in the city of New York, and not "by general taxation throughout the State," the Court of Appeals holds that it is not within the terms of the Constitutional prohibition, and therefore reverses the decision of the Court of Common Pleas on that particular point, while agreeing with it on the main question.

As the money, appropriated to the Roman Catholic Protectory, was unquestionably money of the State, "being raised by general taxation throughout the State," that appropriation was unquestionably in conflict with the prohibition of the Constitution, which the Governor was sworn to support.

Of the courage and independence displayed by Governor Cleveland in thus vetoing a measure in which so large a number of his political supporters might be supposed to feel so deep an interest, this is not the place to speak. But it is creditable to him as a lawyer that alone without a single precedent

to guide him, relying upon his own judicial sense, and rejecting the opinion of a former Attorney-General, he challenged "the validity of this appropriation under that section of the Constitution." The Protectory, he says, "appears to be local in its purposes and operations." And being a sectarian charity, he adds, "Public funds should not be contributed to its support. A violation of this principle in this case would tend to subject the state treasury to demands in behalf of all sorts of sectarian institutions, which a due care for the money of the State, and a just economy, could not concede."

In the higher and broader field of public service—"the grandest throne on earth"—as the Presidency which he is about to enter, has been grandiloquently called, let us hope that he will display the same honesty, capability, and fidelity to the Constitution. We shall then be assured that the interests of the Republic will suffer no detriment at his hands.

Notes

1.

Stark's History of Dunbarton, p. 178.

2.

Parker's History of Londonderry, p. 180.

3.

New Hampshire Adjutant General's Report, 1866, vol. 2, p. 95.

4.

Same, p. 99.

5.

Same, p. 118.

6.

New Hampshire Gazetteer, 1833, p. 121.

7.

Historical Collections, by Farmer and Moore, vol. 1, p. 240.

8.

The Great Meadow and the site of the elder Rogers' house is easily accessible to any person possessed of a curiosity to visit them. They are in the South-Easterly section of Dunbarton, some six or seven miles only from Concord. The whole town is of very uneven surface, and the visitor will smile when he reads upon the ground, in Farmer and Moore's New Hampshire Gazetteer, that he will find there but "few hills, nor any mountains." He soon learns that the declaration of its people is more correct when they assure him that its surface is a "pimply" one.

9.

Bancroft's History of the United States, vol. 4, p. 127.

10.

Encyclopedia Britannica.

11.

New Hampshire Adjutant General's Report, vol. 2, 1866, p. 129.

12.

"An engraved full-length portrait of Rogers was published in London in 1776. He is represented as a tall, strong man, dressed in the costume of a Ranger, with a powder-horn strung at his side, a gun resting in the hollow of his arm, and a countenance by no means prepossessing. Behind him, at a little distance, stand his Indian followers."—[Parkman's Conspiracy of Pontiac, vol. I, p. 164.

13.

Roger's Journal (Hough's edition), p. 46.

14.

The old "Rogers house," so called, is still standing upon the former estate of Major Rogers, on the east side and near the south end of Main Street, in Concord, New Hampshire. It must be at least a hundred years old, and faces the South, being two stories high on the front side and descending by a long sloping roof to one in the rear. It was occupied for many years by Captain and Mrs. Roach, and later by Arthur, son of Major Rogers, who was a lawyer by profession and died at Portsmouth, in 1841.

15.

A portion of this estate was subsequently sold by his descendants to the late Governor Isaac Hill, of Concord, New Hampshire.

16.

"An act to dissolve the marriage between Robert Rogers and Elizabeth, his wife.

17.

Bouton's History of Concord, p. 351.

18.

Captain Roach died at Concord in May, 1811.

19.

The full title is "Journals of Major Robert Rogers: containing an account of several excursions he made under the Generals who commanded upon the Continent of North America during the late war. From which may be collected the material circumstances of every campaign upon that continent from the commencement to the conclusion of the war. London: Printed for the Author, and sold by J. Millan, bookseller near Whitehall, MDCCCLXV." 8vo., Introduction, pp. viii; Journals, pp. 236.

20.

The full title of this volume is "A Concise Account of North America; Containing a description of the several British Colonies on that Continent, including the islands of New Foundland, Cape Breton, &c., as to their Situation, Extent, Climate, Soil, Produce, Rise, Government, Religion, Present Boundaries and the number of Inhabitants supposed to be in each. Also of the Interior and Westerly Parts of the Country, upon the rivers St. Lawrence, the Mississippi, Christino and the Great Lakes. To which is subjoined, An account of the several Nations and Tribes of Indians residing in those Parts, as to their Customs, Manners, Government, Numbers, &c., Containing many useful and Entertaining Facts, never before treated of. By Major Robert Rogers. London: Printed for the Author, and sold by J. Millan, bookseller, near Whitehall. MDCCLXV." 8vo., Introduction and Advertisement, pp. viii; Concise Account, pp. 264.

21.

The full title of this book is "Ponteach; or the Savages of America. A Tragedy. London. Printed for the Author, and sold by J. Millan, opposite the Admiralty, Whitehall, MDCCLXVI."

22.

Journals, Hough's edition, p. 218.

23.

Sir William Johnson in a letter to General Thomas Gage, dated January 34, 1765, says of Rogers: "He was a soldier in my army in 1755, and, as we were in great want of active men at that time, his readiness recommended him so far to me that I made him an officer and got him continued in the Ranging service, where he soon became puffed up with pride and folly from the extravagant encomiums and notices of some of the Provinces. This spoiled a good Ranger, for he was fit for nothing else—neither has nature calculated him for a large command in that service."—[Journals, Hough's edition, p. 215.

The same to Captain Cochrane November 17, 1767, says: "I raised him (Rogers) in 1755 from the lowest station on account of his abilities as a Ranger, for which duty he seemed well calculated, but how people at home, or anywhere else, could think him fit for any other purpose must appear surprising to those acquainted with him. I believe he never confined himself within the *disagreeable bounds of truth*, as you mention, but I wonder much they did not see through him in time."—[Journals, p. 241.]

24.

Journals, p. 217.

25.

Same, p. 242.

26.

Journals, pp. 234, 235, 236.

27.

Same, p. 231.

28.

Same, p. 231.

29.

Benjamin Roberts in a letter to Sir William Johnson, dated February 19, 1770, says: "Kingston has a most extraordinary letter from London, which says that Major Rogers was presented to His majesty and kissed his hand—that he demanded redress and retaliation for his sufferings. The minister asked what would content him. He desired to be made a Baronet, with a pension of £600 sterling, and to be restored to his government at Michilimackinac, and have all his accounts paid. Mr. Fitzherbert is his particular friend."—[Journals, p. 256.

30.

Journals, p. 259.

31.

Journals, p. 261.

32.

Same, p. 118.

33.

Same, p. 263.

34.

Same, p. 273.

35.

New Hampshire Prov. Papers vol. VIII, p. 185.

36.

Journals, p. 277.

37.

Parker's History of Londonderry, p. 238.

38.

See 10 Daly's Reports, 319; and 96 New York Reports. 137.

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